REBECCA NEZURU CONLON
versus
JUMP TRAMPOLINE PARK

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE, 30 September, 1,2,3,4 October 2024 &10, 11, 12, 13, 14 March 2025 &14 April 2025 & 13 May 2025 & 23 January 2026

Civil Trial-Damages for bodily injuries

Mr *T. Mpofu,* for the plaintiff
Mr *T. Zhuwarara*, for the defendant

MUSITHU J:

Introduction

1. Before the court is a claim for damages for personal injuries sustained by the plaintiff, Rebecca Nezuru Conlon at the defendant's Trampoline Park. Proceedings were commenced in the name of Ross Conlon, Rebecca's father and natural guardian. This was because Rebecca was still a minor at the material time. On 25 November 2025, a chamber application was filed for the substitution of Ross Conlon with Rebecca Nezuru Conlon, as the plaintiff after Rebecca reached the legal age of majority. That substitution was formally endorsed through an order by consent granted by this court on 15 January 2026. Any reference to the plaintiff hereafter shall mean Rebecca Nezuru Conlon or simply Rebecca.

2. The plaintiff issued summons against the defendant claiming the sum of USD$ 6 370 000 (six million Three Hundred and Seventy Thousand United states dollars) being damages arising from injuries that she sustained on 6 January 2023 at the defendant's Trampoline Park (the Park). The plaintiff claimed that the accident was caused by the defendant's negligence. The monetary claims were set out under the different heads as follows:

> "1. THAT Defendant be and is hereby ordered to pay to Plaintiff the sum of USD$ 800,000 (Eight Hundred Thousand United States Dollars) being damages for loss of current and future amenities that Plaintiff suffered as a result of Defendant's gross negligence.

2. THAT Defendant be and is hereby ordered to pay to Plaintiff the sum of US$ 500, 000 (Five Hundred Thousand Dollars) being damages for loss of professional earnings.
3. THAT Defendant be and is hereby ordered to pay to Plaintiff the sum of US$ 600,000 (Six Hundred Thousand United States Dollars as damages for the Plaintiff's loss of earning capacity.
4. THAT Defendant be and is hereby ordered to pay to Plaintiff the sum of US$ 170,000 (One Hundred and Seventy Thousand United States Dollars) as damages for Plaintiff's current medical and hospital expenses.
5. THAT Defendant pays to Plaintiff USD$ 1,800,000 (One Million Eight Hundred Thousand United States Dollars) as damages for Plaintiff's future medical and hospital expenses.
6. THAT Defendant pays to Plaintiff US$ 1,000,000 (One Million United States Dollars) being damages for pain and suffering.
7. THAT Defendant pays to Plaintiff USD$ 500,000 (Five Hundred Thousand United States Dollars) being damages for disfigurement.
8. THAT Defendant pays to Plaintiff USD$ 1,000,000 (One Million United States Dollars) being damages for plaintiff's shortened expectation of life.
9. THAT Defendant be and is hereby ordered to pay Plaintiff's costs of suit on the legal practitioner and client scale."

3. Four witnesses, including the plaintiff, testified in support of the plaintiff's claim. At the conclusion of the plaintiff's case, the defendant applied for absolution from the instance. On 11 November 2024, I handed down judgment in HH 512/24, dismissing the application for absolution and the trial proceeded to the defendant's case. For the sake of completeness of the record of proceedings, I shall summarise the parties' respective cases hereunder.

Background to the plaintiff's claim

4. The defendant owns and operates a trampoline park for the entertainment of children and adults. On the 6th of January 2023, and in the company of her mother and her sisters, the plaintiff visited the Park to enjoy the use of the trampoline facilities. While using the facilities, the plaintiff fell from a height of about 3 metres through an unprotected open area adjacent to a series of trampolines, against a brick wall and then down onto a concrete floor, suffering severe injuries in the process. As a result of the mishap, the plaintiff broke her neck and fractured her spinal cord.

5. The plaintiff's contention was that the mishap was caused by the defendant's breach of its duty of care towards her for the following reasons:

- It failed to inspect, repair and keep its equipment in good working order;

- It failed to ensure that its equipment had adequate safety measures which would protect children from and against any form of harm;
- it failed to ensure the observance of general safety precautions that would have removed the plaintiff's child from harm's way;
- It failed to fully and properly explain to the plaintiff or any of her representatives the risks associated with partaking in its business activities.

6. After the accident, the plaintiff underwent an extensive operation at a local hospital and was thereafter Medi-air-evacuated from Harare to Johannesburg for further treatment and rehabilitation. It was averred that as a direct result of the accident and the defendant's gross negligence in causing the same:

- the plaintiff was paralyzed, and her injury was categorized as a severe C4 quadriplegic injury which affected her hands, trunk, legs and normal bodily function.
- the plaintiff required permanent care for twenty-four (24) hours a day and assistance with her daily activities.
- the plaintiff required a powered wheelchair with specific controls to enable her to move around on her own.
- the plaintiff struggled to breathe on her own as she had suffered from a collapsed lung that required regular suctioning.
- the plaintiff could not control her bowel and bladder movements on her own and required permanent assistance in that regard.

7. The plaintiff was a gymnast who had suffered loss of current and future amenities of life estimated at US$800,000.00. As a national gymnast, she had also lost professional earnings estimated at US$500,000.00. At the time of the accident, the plaintiff was pursuing an academic career, an opportunity that was now lost. She was no longer able to undertake productive work and therefore suffered loss of general capacity estimated at US$600,000.00.

8. The plaintiff also incurred extensive medical expenses estimated at US$170,000.00. She was required to undergo continuous international specialist rehabilitation and was likely to be in permanent need of a specialist doctor, physician, physiotherapist, a bio kineticist, as well as extensive rehabilitation, permanent catheters and constant medication. For that reason, she suffered damages for future medical and hospital expenses estimated at US$1, 800,000.00.

The Defendant's Plea

9. In its plea, the defendant denied that it failed to inspect, repair and keep its equipment in good order. It also denied that it failed to ensure that its equipment had adequate safety measures which would protect children from any form of harm. It further denied that it failed to ensure the observance of general safety precautions that would remove the plaintiff from harm. The defendant averred that the plaintiff had been warned against performing dangerous backflips prior to the accident on the day in question. The defendant also denied that it failed to fully and properly explain to the plaintiff the risks associated with playing at the trampoline park.

10. The defendant did not deny that the child had an accident at its facility and suffered injuries. It however denied having knowledge of the nature and extent of the injuries sustained. The defendant further denied having knowledge of the severity of the injuries, the medical procedures that the child underwent and the kind of care that she required now and in future because of the accident. The defendant also denied liability and the resultant claims for damages and prayed for the dismissal of the claims with costs.

11. The agreed issues for trial were recorded in an amended joint pre-trial conference minute as follows:

- Whether the accident was as a result of the defendant's failure to ensure that its business equipment had adequate safety measures for children.
- The nature and extent of the plaintiff injuries.
- The quantum of damages to be paid.
- The appropriate level of costs to be paid.

The Trial

12. At the commencement of the trial, a preliminary issue arose about whether the plaintiff's claim was founded on negligence or gross negligence. Mr *Zhuwarara* appearing for the defendant, noted that in his opening address, Mr *Mpofu* appearing for the plaintiff had submitted that the claim was based on negligence. Mr *Zhuwarara* submitted that the plaintiff's prayer was predicated on a claim based on gross negligence, if one had regard to the plaintiff's declaration. The defendant's plea was in response to a claim based on gross

negligence. The defendant therefore reserved its rights to amend its plea to plead indemnity as a defence to the claim if it was based on negligence.

13. In his response, Mr *Mpofu* submitted that the claim was based on negligence as was clear from the amended pre-trial conference minute that captured the issues for trial. Further, paragraph 4 of the declaration pleaded the requirements of wrongfulness, while paragraph 8 made specific reference to negligence. Counsel further submitted that there was no need for the plaintiff to amend his claim to make specific reference to negligence when it was clear that the cause of action was based on negligence. At any rate, gross negligence did not constitute a cause of action under the Aquilian action.

14. Both counsels agreed that the matter would proceed as pleaded with the defendant reserving its rights to seek an amendment to its plea should that need arise.

The Plaintiff's Case

15. Evidence was led from four witnesses. These were the plaintiff's father, Ross Conlon, Sharon Conlon, (the plaintiff's mother), Doctor Nathaniel Zimani, a neurosurgeon, and the plaintiff herself. The witnesses' evidence is summarized hereunder as follows.

Ross Conlon

16. He and his wife were the plaintiff's legal parents following the loss of her biological mother ten days after her birth. The plaintiff showed signs of being a great sportsperson from a very tender age. At 2 years of age, she was already practicing gymnastics as well as playing tennis. At 4 years she was engaged in high level gymnastics. At the age of eight years, she had made it into the Zimbabwe gymnastics team and was able to compete with athletes two years her senior at the Zone 6 competitions, amongst other competitors from Namibia, Botswana, Zambia and South Africa.

17. At 9 years, she was a national champion after winning a gold medal at the Kwazulu Natal championships. At 10 years, she was scouted to join the South African gymnastics team. At 11 years, she was considered one of the top gymnasts in Africa, and that recognition earned her a selection to train in Europe in preparation for the Olympics. He also described her as an avid academic who excelled in school.

18. The witness described a trampoline park as an enclosed space made up of multiple trampoline pits filled with form, which enabled one to jump from one trampoline to the next

in a controlled environment. The trampolines were elevated between 1.2 to 1.5 metres above the ground. From a stationary position, one could jump to a height of between 3 to 5 metres. One could also manage a jump of approximately 3 metres from one trampoline to the next in a horizontal movement. The witness stated that the jump trampoline facility posed an inherent danger which required that safety precautions be in place to avoid any form of harm to participants. For that reason, there were safety nets that held the jumpers back to avoid a dangerous fall.

19. The witness was shown several photographs from the plaintiff's bundle of documents which depicted the setup of the trampoline park and the exact location of the accident scene. The child was performing horizontal flips when she flew through an opening where the safety net had been lowered, onto a concrete floor thereby breaking her neck and spinal cord. When the witness visited the park about 6 days after the accident, the safety net that was lowered at the point Rebecca flew through had been raised to close the hole through which she flew. The witness recorded a video which captured some of the defendant's staff members explaining to him what transpired on the day of the accident. The two ladies that he spoke to were grateful that the safety net had since been raised to avoid a similar mishap.

20. During his own investigation, the witness noticed that there were metal hooks along the wall which secured harnesses. When the child flew through the empty space, she hit her head against the hooks before landing on the concrete floor. There was some blood on the floor which showed that the child was injured when she made contact with the hooks before landing on the concrete floor.

21. The park was a place of recreation and honing of skills by aspiring gymnasts. It was therefore patronized a lot by children. As a parent, the witness released his children to take part at the facility knowing there would be protective measures in place to guarantee their safety. From his assessment, 95% of the trampoline was secured by high nets which provided some measure of safety to children participating in the different trampolines. The other 5% was not secured by high nets and this was the area that had metal hooks on the walls that were designed to secure harnesses. The hooks and the walls were not padded, leaving children exposed to danger if they flew out through the unsecured area.

22. The unsecured area where the plaintiff fell through was made up of a concrete floor, which was also unpadded. The child therefore fell from a height of about 2,1 meters, which made her break her neck and spinal cord. The area covered by concrete could have been secured by a 25mm compressible cushion that would have prevented serious injuries if a child fell on it. The lowered nets seriously compromised the safety of the children. The witness' own experience with jump trampolines in other countries was that there were always extra safety measures that were designed to protect the children from injuries.

23. When the accident happened, the witness was at home in Christon Bank. When he was informed of the accident, he immediately drove to the park, which is situated in the Pomona/Vainona suburbs of Harare. He found the child lying on the floor where she had fallen and she had a bandage around her head. The ambulance that had been summoned by the defendant's staff arrived at the park some 45 minutes late.

24. According to the witnesses, there were CCTV cameras within the facility, and his legal team sought permission from the defendant's officials to view the CCTV footage. Instead of being availed with footage for the day of the accident, they were only shown footage which was one year-old, based on the clothes the plaintiff was wearing at the time. The defendant's officials therefore deliberately concealed the CCTV footage for the day of the accident. That evidence would have revealed the position of the nets and how the accident happened.

25. The witness went on to narrate the events that unfolded after the plaintiff was referred to the Health Point Medical Facility where she was attended to by a Dr Zimani. They proceeded to the Avenues Clinic for an MRI scan procedure to assess the extent of the injuries. That procedure required about US$5, 000.00, which he had to run around and raise before the procedure could be performed. That process took them about five hours and thereafter they returned to the Health Point Medical facility.

26. Having noted the severity of the injuries, Dr Zimani recommended an immediate operation to decompress the plaintiff's spinal cord, as well as to reconstruct the neck whose bones had been broken. For the operation to succeed, about US$29, 000. 00 was required to cater for all the expenses related to the operation (US$17, 000.00 for Dr Zimani, US$8, 000.00 for the anesthetist and US$4, 000.00 for the extra medicals in the form of screws and plates

required in the reconstruction of the neck). The operation itself took more than 8 hours complete.

27. The witness also told the court that the post operation rehabilitation services required the plaintiff to be evacuated to South Africa where she could receive further treatment and care that was not available locally. In South Africa they visited the Nedcare Rehabilitation Centre in Johannesburg where the plaintiff was detained for about 3 months. They had to contend with a medical bill of about R 98, 000.00 per week. They had spent around US$8, 500.00 for her repatriation to South Africa.

28. At the medical facility in South Africa, initially the witness had to request the hospital authorities to allow his wife to sleep in a chair next to the plaintiff's bed. This was to allow her to closely monitor the plaintiff and turn her around because she could not move on her own. Later, they negotiated to stay in a storeroom which was furnished with a bed where they had to put up for a couple of weeks while monitoring the plaintiff's progress.

29. While they were in South Africa, they were warned that the nature of the spinal cord injury was such that the cells left in the spinal cord would die if the plaintiff did not receive specialist medical attention and rehabilitation. The specialist services recommended to them were only accessible at the Shepherd Centre in Atlanta, United States of America and the Sheba Medical Centre in Israel. The facilities turned out to be too expensive and unaffordable.

30. Because of escalating costs, the plaintiff's parents had her discharged from the medical facility in South Africa, and they stayed in a cottage in Midrand where they were consulting a female general practitioner. They also engaged a physiotherapist who charged R1150.00 per hour. They negotiated a fee of R785.00 per hour. A neurologist was also engaged to manage the plaintiff's bladder and bowel dysfunction. Following the accident, the plaintiff no longer felt the urge to visit the bathroom. The neurologist charged R4,500.00 every 6 months. An *aqua* therapist was also engaged to assist with the plaintiff's rehabilitation. They had been charged R950.00 per hour, but the figure was negotiated downwards to R650.00.

31. The plaintiff was also enrolled for biokinetics sessions. The sessions were intended to improve the plaintiff's physical functions, managing chronic conditions, recovering from injuries, improving wellness and boosting her athletic performance. They were charged

R1000.00 for 12 hours per week. There was also the extra skeletal system which required them to pay between R1100.00 and R1300.00 twice a week.

32. The plaintiff was also required to undergo Transcranial Magnetic Stimulation (TMS) for three months. The procedure is a non-invasive medical treatment using pulses to stimulate nerve cells in the brain. A series of the Magnetic Resonance Imaging**,** were also conducted to check on her brain map. The plaintiff's father paid in excess of R22,000.00 for the study. The plaintiff also attended Nedcare Hospital once a week where a robot was placed on her head for a fee of R1,100.00 per hour. After the procedure, they could see some movement in her hands, although she was so weak that she could not tear a piece of paper.

33. Apart from the TMS procedure, the plaintiff also attended psychological sessions which were administered by the internal hospital psychologist. She was also connected to other forms of rehabilitation such as swimming. There were two-hour sessions which were performed once a week. The plaintiff was required to pay R1,200.00 per hour.

34. After leaving Midrand, the plaintiff and her parents returned to Zimbabwe in August 2023, where they continued with her rehabilitation. For a whole year, the plaintiff's father would be driving to a therapist. They ended up hiring a dedicated nurse as the plaintiff required specialist attention every day. A fee of US$30.00 per day was required for the nurse's services.

35. The injuries sustained by the plaintiff, and her rehabilitation generated a lot of interest within the medical fraternity. In October 2023, the plaintiff and her parents were invited to Capetown in South Africa, to view a facility which offered analytical and aligning therapies. They paid a fee of R2,500.00 for the process.

36. They returned to Zimbabwe in December 2023 where they required the services of a neurosurgeon. The cost of engaging a neurosurgeon was twice what they were required to pay in South Africa. They also visited St Giles Medical Rehabilitation Centre. The form of therapy administered at the facility was not satisfactory in view of the injuries sustained by the plaintiff. Because of the demands for travel with the plaintiff, the witness could no longer sustain his profession as a business consultant. He had to give it up.

37. The plaintiff and her parents flew back to Cape Town after four months. They returned to Zimbabwe in May 2024. In September 2024, the plaintiff's health began to deteriorate. They

left for Capetown University in South Africa around 2 September 2024. What they wanted to establish was the best kind of therapy for the plaintiff in view of her deteriorating health. The analysis at Capetown University required them to pay R2, 500.

38. The witness also told the court that the plaintiff had to give up her academic career because of her condition. They could not find an academic institution that could provide facilities that would accommodate her condition. She could not make use of her hands. The plaintiff's parents had to arrange a special shower for her. She no longer had feelings in her body. She could not feel burns and could not tell if bath water was hot or cold. At one point they found her seated in a tub with steaming hot water. She could not feel any pain, but she sustained serious burns which required further medical attention.

39. So bad was the plaintiff's condition that she could no longer perform basic household chores expected of a person of her age. She could no longer hold a knife or perform domestic tasks such as cooking or washing kitchen utensils or clothes. She could not even visit the toilet on her own without assistance. She could not push out stool and needed her mother to help stimulate the process of releasing stool by putting her finger in her back in order to stimulate bowel movement. Such complications led to her being catheterized. They also had to customize the home environment to take care of her special needs.

40. For her mobility, the plaintiff was relying on a wheelchair with controls. Her collapsed lung required regular suctioning. When she flew in an aeroplane, her lungs got impaired leading to breathing complications.

41. To increase plaintiff's life expectancy, there was need for her to be relocated to another country with advanced medical facilities that were required to manage her deteriorating condition. Such facilities were not available locally. The witness professed ignorance about the contents of the indemnity form that parents were required to sign at the defendant's reception. He claimed not to have seen the various notices that were placed on walls which set out the indemnity terms that protected the defendant from any form of liability arising out of its negligence.

42. The witness concluded his examination in chief by giving a rundown of the various amounts recorded on hospital invoices placed before the court.

Sharon Barbara Conlon

43. The second witness was the plaintiff's mother. She was the one who accompanied the plaintiff to the park, together with her other two daughters on the day of the accident. Though she did not witness the accident, she was at the facility when it happened. Her account of the events that took place on the day in question was similar to that of her husband, the first witness.

44. The witness was in the reception area completing the attendance register when the accident happened. The witness claimed to have signed a document containing some information, but she never had the chance to read through it, and neither did anyone explain the contents thereof to her. From her own observations, the absence of padding on the walls and the concrete floor and the lowered safety net caused the injuries that were sustained by her daughter.

Dr Nathaniel Hamundigone Zimani

45. The third witness was Doctor Nathaniel Hamundigone Zimani, a neurosurgeon with 20 years medical experience. He testified as an expert witness. He was the first doctor who attended to the plaintiff at the Health Point Hospital in Harare following the accident. He explained his involvement in diagnosing the injuries suffered by the child, the nature of the surgery to be carried out, the post-surgery medical procedures required, the plaintiff's rehabilitation and the costs involved.

46. The witness spoke of the surgery to fix the spinal cord as being risky since the patient was in spinal shock after the accident. The surgery involved a very delicate part of the body. If they had damaged the nerve near the spinal cord, then the plaintiff would have died.

47. The witness corroborated the evidence given by the plaintiff's father with reference to the injuries sustained, the nature of the future medical care required, and the costs involved.

Rebecca Nezuru Conlon

48. The fourth witness was the plaintiff herself. Her evidence did not differ much from that of the first and second witnesses as regards the nature of her injuries, her lifestyle before and after the accident. She also explained how the accident had completely shattered her dreams as an aspiring top gymnast. Apart from gymnastics she also had a hand in other sporting disciplines such as swimming, tennis, hockey, soccer and cricket, before the accident.

49. She also had dreams of excelling in academia, apart from honing a career in gymnastics. She was hoping to secure a scholarship to a top university to pursue a career in gymnastics or physiotherapy. The plaintiff's case was closed with the conclusion of her testimony.

The Defendant's Case

Evidence was led from three witnesses, and these were Cheryl Dawe, Miriam Mafararikwa and Malvern Mzilikazi Mudzingwa.

Cheryl Dawe

50. She introduced herself as the proprietor of the defendant, having opened the facility in 2021. The setting up had started in 2020, but it was slowed down by the Covid 19 pandemic. The Chinese manufacturers and designers eventually came to set up the trampoline towards the beginning of 2021.

51. The witness explained a jump trampoline park as a place for recreational activities for children from two years of age to adults, for as long as they satisfied the weight restrictions. The facility operated hourly slots in order manage the large number of patrons at any given time. She explained the operations of the facility as follows. On arrival at the front desk, the patrons were met by a manager who explained the operations of the facility. Patrons were required to complete the indemnity forms, and the terms and conditions were explained at that stage.

52. The patrons were required to acknowledge that they had read and understood the terms and conditions. The patrons were expected to pay for the sessions at that stage. The parents or guardians of the children were also required to provide their home addresses and telephone numbers in the indemnity form. The information was necessary as it allowed the defendant to make follow ups and get feedback on the clients' concerns or expectations.

53. Parents were required to sign the indemnity form because trampolining involved risks of physical injuries. Even though the defendant's desire was to create a safe environment, injuries could still occur, through falling and twisting of ankles. For instance, bullet 8 of the Indemnity Terms warned patrons against landing on their head or neck.

54. If a patron was not willing to sign the indemnity to acknowledge the risks involved, then their children would not be permitted to enter and participate in any of the activities at the

park. The terms and conditions were intended to make the facility as safe as possible, as well as keeping risk of injuries as low as possible.

55. The participants were also given coloured wristbands, which made it easier for the defendant's staff to monitor adherence to the allocated time slots for participants. The witness also highlighted that the facility ran hourly slots of not more than one hundred children inside the trampoline areas at any given time. Adherence to time slots was monitored through the coloured wrist bands which showed the time that a patron would have entered the facility. The wristbands ensured that there was no overcrowding at any given time.

56. Before the facility was opened to the public, its staff members had received training from a manager of one of the prominent trampoline parks in South Africa. Training was received on the handling of patrons who visited the facility to participate in various activities. Six staff members patrolled the facility, reminding participants about the rules and safety measures. They also directed patrons to their activity areas of choice. Two staff members monitored the areas outside the trampolines. These included sitting areas, toilets and walkways. They also ensured that every participant had the right-coloured wristband.

57. There were six separate areas within the park with different operators. In each of the areas, there were signs warning and reminding children and patrons of the risks involved in trampolining. Besides staff and warning signs, the facility also boasted of round-the-clock CCTV surveillance.

58. The six separate areas of the facility were described as follows. The first was the section with an airbag which allowed the participator to jump into the airbag and then land softly. The second section had basketball hoops and rebounding walls with vertical trampolines. It allowed children to hang onto the basketball hoops and when they fell, they would bounce off the rebounding walls. The third section was the tumbling trampoline. It consisted of one continuous trampoline with no padding in between separating the trampolines. It allowed a patron to jump continuously. At the end of the trampoline was a rebounding wall which was made up of a trampoline at a vertical angle. It allowed the patron to bounce off and back at the continuous trampoline.

59. The fourth section was the dodgeball area which was completely closed in with rebounding trampolines at the sides. There was always a member of staff inside the area to guide participants on how to play the dodge ball game. The fifth section was a two-foam pit area. It was made up of two pits with two big foams inside and padding around areas with climbing apparatus around the foam pit.

60. The sixth area was what the witness called the toddlers play area. It consisted of a set of individual trampolines with springs covered in padding. The intended purpose was to have one child jump at a time vertically on each of the trampolines which were surrounded by padding.

61. According to the witness, all trampolines had springs on steel frames. The springs and steel frames were covered in padding which was intended to protect children from injuries if they fell awkwardly. Apart from the padding, there were also transparent nets which were intended to demarcate where the park ended and the walkway where the outside area began. The height of the net was determined by engineers from the Chinese company that designed the park. It was the same company that designed trampolines parks all over the world.

62. The witness stated that she had been assured by the manufacturers that the facility adhered to the safety standards that were prescribed in all the trampolines that they had set up throughout the world. To preserve these safety measures, the facility was closed every Mondays for routine maintenance. The inspection was done by local health and safety inspectors who were required to certify compliance levels to facilitate the issuing of an operating licence.

63. Coming to the incident involving the plaintiff, the witness stated that it was the first of its kind as no one had gone through the net barrier before. From the time the facility opened its doors to the day of the accident, the defendant had hosted thousands of children of different ages. Participants were drawn from schools, orphanages and children who came with their parents or guardians during weekends, working days and school holidays.

64. According to the witness, the netting around the trampolines was not intended to hold a human body, but to demarcate where the padding ended as well as to provide a boundary line around the jumping area. If a child were to jump through the netting, they would go

straight through the netting or hit themselves around the steel bar which was padded. This was because the netting was not designed to withstand the weight of a person in motion.

65. The witness stated that prior to the accident, there had not been any complaints about the height of the net surrounding the area where the plaintiff flew through before she landed on the floor. The witness insisted that the net was not intended to be bounced against. The net had no springs and so if the child were to bounce against it, the net would break, and the child would fall.

66. The witness believed that the injuries sustained by the child would not have been different even if the netting was higher. This was because the child was moving too fast from one trampoline to the next, and the net would not have stopped her. The witness reached this conclusion after reviewing the CCTV footage, which showed that even assuming there was net, the speed and the momentum of the plaintiff's travel was such that she would still have gone through the net and landed the way she did.

67. The springs around the individual trampolines where the plaintiff was performing were all padded. The defendant's staff members were monitoring the children's activities from close by. There were also five warning signs around the area where the plaintiff was performing. The witness insisted that the defendant's equipment was in good working condition, and that the safety measures in place were adequate to avert the accident. There was nothing else that the defendant could have done to avoid the accident.

68. The witness denied that the risks associated with trampolining activities were not fully explained to the defendant and her guardian. The mere signing of the indemnity form was an admission that the guardian had fully appraised herself with the terms and conditions contained therein. Further, those terms and conditions were also found on the defendant's social media accounts which included Facebook and Instagram.

69. It was also averred that if a patron refused to observe the terms and conditions of the facility, then the staff member present would inform the defendant's manager. The manager would in turn advise the staff member to warn the patron that if they continued to misbehave, then they would record a video which they would forward to the witness. The witness would make the final decision after engaging with the parent or guardian of the child concerned. If

the misconduct persisted after all efforts were made to engage the parent or guardian, the witness would bar the parent and the guardian from accessing the facility.

70. The witness also stated that after the accident, she reached out to the plaintiff's family as a concerned mother of two daughters herself and out of her love for children. She made a monetary donation not out of guilt, but as a way of contributing towards plaintiff's pressing financial demands for medical attention. She also sent get well cards and flowers to the plaintiff's family. She would also pray for the child as well as enquire about her well-being almost daily. She also informed the plaintiff's family about the defendant's liability insurance and how it could be accessed for the benefit of the plaintiff. That open line of communication was suddenly stopped when the defendant was taken to court.

71. The defendant's liability insurance covered risks against fire, theft and gross negligence. The witness approached the defendant's insurers and requested them to assist the plaintiff, but the insurer informed her that it would only cover a claim for gross negligence. The insurance report generated after the insurer's own investigation concluded that the defendant was not grossly negligent and therefore no claim could be competently made.

72. Under cross examination, the witness told the court that the name of the company that operated the trampoline park was Naked Feet Trading (Private) Limited. She denied that she had refused to disclose that name to the plaintiff's legal practitioners upon request, insisting that she had instructed her legal practitioners to attend to that request. Her legal practitioner had advised her that it was not her duty to assist a party that wanted to sue the defendant with that kind of information. It was incumbent upon that party to find out for themselves.

73. She confirmed under cross examination that the plaintiff's accident was not the first to befall the defendant after it opened its doors to patrons. The defendant had experienced another accident involving a child, which had prompted it to approach its insurers.

74. The witness denied that she was making every effort to frustrate the plaintiff's claim, asserting that she had done everything she could do to support her. She had even approached the plaintiff's father and asked him to provide details of the plaintiff's coaches as she wanted to arrange some fundraising activities at the trampoline. When asked if she would give the child the sum of six million dollars claimed if she had it, her response was that she would

have paid the amount, but not on account of the injuries that the plaintiff suffered at her facility, but out of empathy as a caring mother.

75. She was aware that the insurers refused to pay the claim in accordance with their report. That report had been prepared without the benefit of any input from the plaintiff or her parents. The witness also conceded that her position had been influenced by the insurers report. She could not take a position that was at variance with her insurers. The insurance company had advised her that its legal practitioners would engage with her legal practitioners on the issue.

76. The witness insisted that if she had her own way of making the insurance company pay the insured amount of US$50, 000. 00, she would have done that so that the plaintiff gets financial assistance. The insurance policy cover of US$50, 000.00 was proposed to her by the insurers after they inspected the park. The insurers had also advised her that the maximum payout for loss of life in Zimbabwe ranged between US$20, 000.00 and US$30, 000.00. She admitted though that one could not put a price on a life and that the insured amount of US$50, 000.00 could not fully compensate one for the loss of a life.

77. She was aware that by the end of the first day following the accident, the plaintiff had incurred about US$34, 000.00 in medical costs. She also conceded that by taking an insurance policy with a cap of US$50, 000.00, the defendant was putting itself at the risk of absorbing any claims above the insured amount of US$50, 000.00.

78. The witness insisted that the gap through which the child fell and injured herself was part of the manufacturer's designs. When it was put to her that the defendant could have asked for indemnity from the designers of the facility, the witness stated that her legal practitioners had not advised her of the defendant's right to make a claim against the manufacturers. The manufacturers' designs were available but were not placed before the court. For that reason, the witness also conceded that in the absence of the designs, it would be difficult for the court to conclude that the facility was set up in accordance with the acceptable world standards.

79. The witness admitted under cross examination that the park was constructed largely for children and for that reason there were additional obligations that had a bearing on the safety of the children as a vulnerable group. There was an obligation to anticipate irrational

unreasonable behaviour on the part of the children. That obligation was expressed in the safety measures that the defendant was expected to put around the facility.

80. After the accident, the defendant decided to experiment by raising the height of the net where the plaintiff flew through. Her conclusion was still that the netting, which was made of nylon, would not have stopped the child from flying through the netting and falling outside the trampoline. When probed further as to the wisdom of making worthless changes to the portion where the net was lowered, the witness stated that she realized later that the proposed changes were insignificant. This was because that part of the trampoline was located at an entrance, and the height of the nets was the same at all entry points.

81. The witness was shown internet images of various trampolines with safety nets. The common features on the images were springs, a steel structure, a net and padding. The witness agreed with the plaintiff's counsel that generally, the purpose of the net was to create a barrier that prevented users from falling outside the trampoline. She, however, insisted that in the case of the defendant, the net was intended for demarcation of various trampolines.

82. The witness further explained the features of the net as follows. It was made up of 3mm-by-3mm nylon rope. The strands were 45 mm apart. In her own estimation, the net could only withstand a weight of not more than 30kgs. The manufacturers' specifications were not placed before the court to confirm this position. When it was put to her that based on research, the net could put up with a weight of 172kgs, and that the plaintiff only weighed 45kgs at the time, the witness conceded that she had no basis upon which to disagree with such an opinion. On that account, the witness further conceded that the plaintiff would not have broken the net. The witness also conceded that she had not established whether the speed at which the plaintiff was performing her jump was such that the net would not have prevented her fall.

83. The witness denied the allegation that she refused to share the CCTV footage of the day of the accident. She had forwarded it to her legal practitioner who was then supposed to hand it over to the plaintiff's legal practitioner. It was also alleged that when the plaintiff's legal practitioner came to view the footage, she had a misunderstanding with the defendant's legal

practitioner leading to her walking out of the meeting. She did not know why the defendant's legal practitioner failed to email the footage to the plaintiff's legal practitioner.

84. The CCTV footage, which was less than one minute long, was downloaded by the defendant's security company that managed the CCTV. The footage was extracted from a longer video recording as the intention was to focus on the part that showed how the accident happened. The extraction was done by a CCTV expert, one Adam Prinsloo, under the witness' instructions. The witness conceded that the integrity of the footage could not be vouched for since the evidence pertaining to the chain of its custody was not before the court. When asked to explain why the defendant did not place before the court the entire footage showing the events of the day, the witness stated that she believed that the only section of the footage that was relevant was the one that recorded the accident as it occurred.

85. She however conceded that the whole footage would have revealed the following: the time that the plaintiff visited the facility; the interactions which her mother had with the defendant's staff and how long the interactions lasted; whether the plaintiff went to the trampoline before or after she was booked; whether the plaintiff had any interaction with the defendant's staff before she started her routine; the positioning of the defendant's staff in relation to where the child was performing; whether there was signage on the walls. Nothing prevented the defendant from producing the entire footage since it had been downloaded. The witness also conceded that if the entire footage was exculpatory then she would have produced it.

86. The witness also conceded that the pictures of the various trampolines that were produced in evidence were downloaded from the defendant's social media handles and depicted the facility as she knew it. Some of the pictures showed the location of the accident on the day it happened. Under cross examination, the witness confirmed that at the end of the trampoline where the plaintiff was performing was an opening, and beneath that opening was a concrete floor which was not padded. There were also metal hooks on the walls that were meant to secure harnesses. There was no entrance at the end of that trampoline. There was, however, an entrance next to the place where the net was lowered.

87. There were six rectangular pads demarcating the trampolines. The last padding was next to the net. It also emerged that when one bounced off the trampoline, it was not easy to control

where one was going, and it was possible for one to jump above the height of the lowered net in an upright position. It was for that reason that safety nets were required. The witness admitted that if one went through the opening where the net was lowered it was possible to hit the unpadded wall and the concrete floor. There was nothing to minimize the impact if one hit the wall as there was no padding on the walls and the floor.

88. The witness also conceded that although one of the posts from the defendant's social media handles read, *"jumpzim Our facilities are the best for your child to learn front flip and backflip……. Exercise has never been this fun @jumpzim"*, the warning signs against performing front and backflips was not legible as could be seen from pictures in the record.

89. It was suggested to the witness under cross examination that had the facility been routinely inspected as she stated on behalf of the defendant, then she would have been asked to close the hole through which the plaintiff flew and injured herself. The witness insisted that there was evidence which confirmed that the defendant had been permitted to operate the facility in that state although that evidence was not placed before the court.

90. The court was also told that the defendant's staff had a duty to address the children when they were inside the park. They showed them the signs and warned them about the risks of not adhering to safety measures. The witness conceded that on this day, they had not warned the plaintiff. The witness also told the court that on previous occasions, the plaintiff had been warned not to perform dangerous jumps. As an experienced gymnast, the plaintiff had used the facility improperly. The defendant's staff had not attempted to stop the plaintiff from entering the park and stopping her from accessing the facilities.

91. The witness also conceded under cross examination that the defendant had not raised the issue of the indemnity in its plea. She also admitted that the wording of the last paragraph of the defendant's Indemnity Terms appeared to suggest that the defendant would not be protected by the indemnity terms if it was found to have been negligent. To that extent, the defendant's indemnity terms did not protect it from liability for negligence, even if it had pleaded that defence.

92. The witness admitted that the defendant had not placed before the court evidence of its inability to pay any damages that a court would award the plaintiff if it found the defendant negligent.

Miriam Mafararikwa

93. The second defendant's witness was Miriam Mafararikwa. Her evidence was as follows. She had been an employee of the defendant for four years from the time that the defendant started operating the facility. She was one of the supervisors, and her duties involved monitoring the activities of the participants in the trampoline park to ensure compliance with the rules of the park. She was ordinarily stationed inside the park where she swapped roles with six of her colleagues.

94. The witness was required to check whether a child wore a wristband before they started using the facilities. The colour of the wristband helped them determine when the time allocated to the participant had expired. It was also her role to check if the children were utilizing the facilities in a proper manner and to reprimand them if they were misbehaving.

95. The witness told the court that on the day that the plaintiff was injured, she had been performing her flips in an extraordinary way that they had not witnessed before. At one point, before the current accident, the plaintiff almost fell overboard, which could have resulted in her breaking her neck. They took pictures of the incident because they had noticed something extraordinary in her jumping. The footage was recorded with the intention of handing it over to their boss, since they were under instructions to notify her about any strange occurrences at the trampoline.

96. When the kids left the park, they informed one of their parents that the defendant's staff had recorded their pictures and were constantly following up on them. The witness and her colleagues had reprimanded the kids about the manner they were jumping, which they felt was inappropriate. Her boss told her that the children's mother was not pleased with the conduct of the defendant's staff. They were instructed not to take the children's pictures anymore or reprimand them.

97. The witness had warned the plaintiff about the way she was jumping and that she risked falling awkwardly and breaking her neck on the yellow board, but she remained adamant that she knew what she was doing.

98. On the day of the accident, the plaintiff came with her mother. They made payment at the reception and were given wristbands. The witness and her colleagues were watching from a distance, and they remarked that the girl with extra ordinary skills had arrived. The children

proceeded to the trampoline area that was preserved for juniors. The plaintiff usually preferred to utilize the bigger trampoline. She started to perform flips repeatedly while in the smaller trampoline. Her performance did not last long as she fell onto the floor and broke her neck and spinal cord. The witness did not have an opportunity to interact with the plaintiff before she fell. In any event, the witness and her colleagues were under instructions from the plaintiff's mother not to interfere with her performance.

99. The area where the plaintiff was performing was too small for the type of maneuvers that she was making. The witness and her colleagues rushed to where the plaintiff had fallen. The witness pressed the emergency button which was close to where the plaintiff had fallen having realized that she may have been seriously injured from the way she fell. They noticed that the plaintiff was bleeding profusely, and the nurse who was present put a pad on the wound to stop the bleeding.

100. According to the witness, the plaintiff jumped about three or four times before she fell. Her view was that the plaintiff was not performing normal jumps. Her version of a normal jump was one where one jumped repeatedly on the same trampoline.

101. The witness went to school up to ordinary level. She used to work with kids at a pre-school owned by the first witness' mother from 1998 until she was transferred to work for the defendant. She received training in trampolining from a South African expert who had been invited to train the defendant's staff.

102. The witness stated that although back and front flips were not prohibited at the park, there was a section where these could be performed by participants with the requisite skills. There were signs inside the facility notifying participants of the nature of the activities that could be performed in a particular section of the park. In relation to the section where the plaintiff fell, there was a board attached to the fence close to where she was performing which had the relevant instructions.

103. The witness admitted that on the day of the accident she had not spoken to the plaintiff or tried to stop her from entering the park. She only spoke to the plaintiff's mother after the plaintiff was injured as she was sympathizing with her and praying for the child. The witness had not any stage warned the plaintiff's mother about the dangerous maneuvers that the plaintiff executed. This was despite the fact that there was a standing rule that if a participant

performed dangerous moves and refused to comply with instructions, then they would be barred from entering the park. She could not stop the plaintiff from entering the park because they had been told that she knew what she was doing, although the witness conceded that the rule was not subject to any exceptions.

104. The witness admitted that if the CCTV footage for the day had been produced, then it would have clearly showed what transpired, including the time she allegedly cautioned the plaintiff, and the other incident where she almost broke her neck.

105. The witness also admitted that she had never spoken to Mrs Drummond after it was alleged that Mrs Drummond had asked the defendant's officials to delete the video footage of the plaintiff performing at the facility. She was also not there when the plaintiff and the other children complained to Mrs Drummond. Mrs Drummond was a friend of the plaintiff's mother. Mrs Drummond and the plaintiff's mother usually took turns to accompany their children to the park.

106. The witness also stated that she did not personally see anyone explain the terms and conditions or give the indemnity form to the plaintiff and her mother. She only believed that this was done at the reception.

107. The witness confirmed that after the accident, the height of the net was raised. She and her colleagues were relieved when the net was raised because what had happened to the plaintiff had shocked them. It had never happened before, and they anticipated that such an incident would not recur after the raising of the net. She, however, averred that the net would not have saved Rebecca from falling to the floor even if it had been raised because it was not strong. Asked to explain why she felt relieved by the raising of the net if it would not have saved the plaintiff from injuries, the witness could only state that it was just a desperate measure because of what had happened.

Malvern Mzilikazi Mudzingwa

108. The last witness was the Insurance Assessor/Loss Adjuster. He had been in that profession since 2010. He worked for insurance companies in various capacities in claims and underwriting between 1991 and 2008. As an assessor, he was approached by insurance companies when a client submitted a claim. The insurer gave him information pertaining to the loss. His job was to verify the validity of the claim in terms of the policy, the cause of

the loss and whether it was the type covered by the policy. If he was satisfied that the policy answered to the claim, he would proceed to quantify the loss. At the conclusion of the exercise, he was required to produce a loss assessment report for consideration by the insurer.

109. Under cross examination the witness confirmed that he prepared his report based on his review of the CCTV footage and a visit to the facility. He had not spoken to the plaintiff or her parents at the time that he prepared the report. After the claim was made, he did not have an opportunity to review the report, even though in his conclusion he had indicated that the report would be reviewed if a claim was made. The report was therefore one-sided based on the version that he got from one party to the dispute. He had also visited the facility at the invitation of the defendant.

110. The witness stated that the CCTV footage that he reviewed was only one minute long. He had not reviewed what happened before or after the accident. He was hoping to review it again after the claim was made but failed to do so because the parties then engaged their legal practitioners.

111. His assessment was that the defendant was not negligent. This prompted him to generate what he referred to as a provisional report. The report was provisional because it had been produced without him hearing the other party.

112. At the time that he visited the facility, the defendant had raised the height of the net to about one point nine metres, which was the same height as the safety net behind other trampolines. He concluded that the adjustment could be mistakenly construed as an admission of negligence on the part of the defendant, especially after it was done soon after the accident.

THE CLOSING SUBMISSIONS

At the conclusion of the trial, the counsels were requested to file closing submissions on specific dates that were agreed upon. The matter was postponed to an agreed date to allow counsel to make further oral submissions or amplify their written submissions should that need arise.

The Plaintiff's Closing Submissions

113. It was averred that the defendant had failed to lead evidence in respect of the following:

- The damages claim;

- the extent of the plaintiff's injuries as well as her future requirements in so far as medical intervention was concerned;
- the design as well as the set-up of the park;
- explanation of the dangers of using the facility either to the plaintiff or to her mother or drawing their attention to any material issue impacting on their use of the park;
- the state of the park prior to the accident;
- the defendant's financial incapacity.

114. The following was noted in respect of the evidence of Cheryl Dawe.

- She apologized on the mistruths that she told the court in a bid to craft a defence on behalf of the defendant.
- She maintained the position that the plaintiff must be paid something and would do anything in her power to get the insurers to make payment.
- She accepted that her evidence that the park was in the state it was in when it was designed by the manufacturer was given for the first time in her evidence in chief, and that in any case, she had not placed evidence from the manufacturers before the court.
- She accepted that by virtue of the park being a facility used by children, the defendant owed certain duties impacting on the safety of its patrons.
- In response to the accident, the hole through which the plaintiff flew out had been closed. The fact that it had subsequently been reopened was immaterial.
- That she could not satisfactorily explain why the CCTV footage of the day of the accident was not shared with the plaintiff, somehow apportioning blame on her legal practitioners. She accepted that the plaintiff had flown through the lowered part of the net.
- No evidence of inspections that were conducted by the authorities was placed before the court. Her evidence revealed that the facility was being run by inexperienced staff.
- She had not spoken to Cherlyn Conlon about the plaintiff's conduct or the way she executed her moves. She had also not barred the plaintiff from the park because of her alleged failure to follow instructions. She had also not spoken to Cherlyn about the terms and conditions of using the park.

- It was averred that the witness did not relate to evidence that could answer the claim, and she ended up making concessions on several material issues that the court was urged to consider in resolving the dispute.

115. The evidence of the **Miriam Mafararikwa** revealed the following;

- She never spoke to the plaintiff or her mother. The unnamed person who allegedly spoke to the plaintiff was not invited to give evidence. She did not speak to the plaintiff or her mother about the facility's terms and conditions. Further, nobody had barred the plaintiff from using the facilities. Instead, they had taken the plaintiff's videos for marketing purposes.
- She also claimed that the plaintiff had, on an earlier occasion, almost broke her neck as she was executing her moves. That averment was not supported by CCTV footage which it could have been done had it been truthful.
- She could not assertively state that she witnessed the plaintiff's fall. Further, her claim that the jumps that the plaintiff was performing were not compatible with the type of trampoline where she was performing was not supported by evidence. The claim did not derive from the chosen defences and was therefore a clear fabrication.

116. As regards the evidence of the Insurance Assessor, **Malvern Mzilikazi Mudzingwa,** the plaintiff's attitude was that this witness ought not to have been called at all. He produced a report on a factual issue without hearing both sides. His report was qualified for that reason. He had not even reviewed the entire CCTV footage. At the time he appeared before the court, he had still not heard the plaintiff's side.

117. On the question of liability, it was submitted that for delictual liability to attach, there must be a duty of care. The enquiry into the existence of the duty of care was separate from that of negligence. The court was referred to the authority of *Sea Harvest Corporation (Pty) Ltd v Duncan Dock Cold Storage (Pty) Ltd* [2000] 1 All SA 128(A). It was further submitted that the existence of a duty of care on the part of the defendant was never put in issue.

118. Once a duty of care was found to exist, the next question was whether it was breached. Such a duty could be breached either intentionally or negligently. The question of negligence therefore arose. Based on authorities cited from other jurisdictions which were of persuasive

value, it was concluded that the defendant's obligations towards children were cast in stone. The defendant was in breach of these.

119. Concerning the question of negligence, it was submitted that this had been related to in evidence by the plaintiff's witnesses but was not controverted by the defendant. The net was lowered at the point through which the plaintiff flew out. The plaintiff's evidence was that this lowering of the net was for the convenience of passing harnesses through the opening. Cheryl's evidence on the other hand was that the net was lowered because it was close to the entrance. The opening was however not an entrance. There was no justification for the lowering of the net.

120. The plaintiff's father testified that in all the parks that he had been to around the world, no such opening was found as it would compromise the safety of patrons. Cheryl on the other hand averred that the park was designed in that state by the manufacturer, but there was no evidence on the issue. It was also not advanced as a defence.

121. The point being made was that this was the point where the plaintiff fell through. Nothing alerted her to the fact that there was a hazard at the end of the trampoline. Cheryl claimed that there was a notice, but what she identified as a notice appeared on the fourth trampoline, and it would not be one for purposes of dissuading anyone from commencing jumps. Mufararikwa could not bring herself to identify where the notice was exactly located.

122. It was submitted that the fact that a proper net would have prevented the accident was borne out by the defendant's conduct of immediately increasing the height of the net after the accident occurred. The defendant had the capacity to do the right thing, but it chose not to do so for its convenience to the prejudice of its patrons.

123. The plaintiff also dismissed as a fabrication the defendant's contention that the net could not hold back the plaintiff's weight. This was because Cheryl accepted the strength of the net under cross examination in the dimensions given by plaintiff's counsel. It had been put to her that the net could hold back a person weighing 174kgs, and yet Rebecca only weighed 45kgs at the time.

124. The defendant's argument that the netting around the park was meant for demarcation was also dismissed as highly misconceived. This was because it was demonstrated under cross examination that even individual home trampolines had safety nets to protect children as

they went up and down the trampoline. The safety feature was therefore indispensable as it saved lives and prevented injuries. They were called safety nets because they provided some protection against injuries. For that reason, it was further submitted that the lowering of the net was the proximate cause of the accident. Had the net been high enough, then the accident would not have occurred. The defendant was therefore negligent in keeping the net at the end of a series of trampolines lowered and this neglect had caused harm.

125. Further, to compound that neglect, at the end of the lowered net were exposed metal hooks. It was foreseeable that anyone flying through that lowered portion would be impaled on the exposed metal hooks. Even if the net was to be lowered, the metal hooks needed to be padded to minimize injuries on impact. The floor itself was also not padded. A child falling through the lowered portion of the net would hit the exposed concrete floor. The park had no adequate safety measures that would avail in the event of an accident. There was evidence of positive neglect rendering the defendant liable under the Aquilian action.

126. It was also submitted that the danger posed by the defects would have been ameliorated through inspections. No evidence of inspections was tendered. The defendant ought to have availed evidence of the fact that the assailed portion of the park was given a thumbs up by the relevant authorities. The evidence would have shown that the lowered net was approved. The same would go for the unpadded hooks and the unpadded floor.

127. The defendant was also accused of failing in its duty to explain the risks attendant upon the use of the park, which included the part where the accident occurred. This was important because the plaintiff had not used this portion of the park before. The plaintiff gave the analogy of a plane where safety measures are explained daily even for frequent flyers. None of the witnesses claimed to have spoken to either the plaintiff or her mother about the risks associated with this portion of the park. The onus was not discharged by the defendant.

128. The plaintiff argued that it was an indictment that children could access a facility and get about their business without being taken through safety drills. The reason, as unwittingly explained by Cheryl, was that children got in for an hour after which they had to leave. From a money-making perspective, it was therefore unnecessary to take them through such a drill. From the evidence given by Rebecca and Cheryl, it was clear that parents just signed in their

children and once inside the park, the children simply rushed in for jumps and flips without being addressed by anyone.

129. The plaintiff dismissed the assertion that the plaintiff was adamant that she did not need to be told what to do as a seasoned gymnast, for the following reasons: no CCTV footage of this exchange between the plaintiff and the defendant's staff was produced; since the plaintiff was a minor, any issues related to her well-being had to be raised with her mother; the averment that the defendant's staff was told off by a minor at a facility that they considered dangerous and they sheepishly complied was the very definition of neglect.

130. The court had specifically put the defendant on its defence so that these issues were dealt with. The defendant had failed to discharge the onus of proof required of it. There was a causal connection between negligence and the harm caused. Were it not for this neglect, the harm would not have occurred. The court was referred to the case of *Lomagundi Sheetmetal and Engineering (Pvt) Ltd v Basson* 1973 (4) SA 523 (RAD) at 524-525.

131. As regards the extent of the injuries sustained by the plaintiff, it was submitted that the evidence of Dr Zumani was not refuted at all. The defendant had chosen to open and close its case without leading contrary expert evidence. Evidence was rebutted by evidence. The absence of evidence in rebuttal meant that the court had to accept the extent of the injuries as submitted by Dr Zumani.

132. The court was urged to accept the effect of the kind of injuries as testified by Dr Zumani. The court had to accept the projection of what future medical intervention was required as well as the cost estimates given by Dr Zumani. The question of the documentary evidence tendered to prove the medical attention that the plaintiff required now and, in the future, resolved itself. There was no contrary evidence placed before the court on which the fidelity of that evidence could be questioned.

133. On the question of the quantum of damages, it was noted that the defendant had chosen to contest liability and not damages. In its plea, the defendant had tendered a bald and bare denial. In its evidence, it had shied away from addressing the issue. The defendant had also not alleged that it could not satisfy the award if made against it. It did not place any financial information before the court.

The Defendant's Closing Submissions

134. It was submitted that the evidence before the court showed that the defendant acted with prudence, foresight, and operational diligence expected of a reasonable proprietor of a recreational facility. It was further submitted that the defendant took all reasonable and proportionate precautions to guard against foreseeable harm. The fact that no system could eliminate all risk was axiomatic at law. The plaintiff had failed to discharge the onus of proving that the defendant's conduct was wrongful, negligent or causally connected to the injury sustained. The law could not be stretched to impose liability where there was no fault.

135. The defendant dismissed as a fallacy and a misdirection, the plaintiff's contention that the very occurrence of injury within a recreational facility frequented by children signaled fault. It was averred that such a submission advanced a theory of strict liability, cloaked in the language of foreseeability. The law of delict did not impose liability merely because harm occurred. Liability only arose where the conduct of the defendant fell short of the standard of the *diligens paterfamilias*.

136. It was submitted that the plaintiff's attempt to cast the incident as *prima facie* proof of negligence collapsed under the weight of legal authority. Reference was made to the case of *Cape Town Municipality v Paine*[1] where it was held that accountability for unintentioned injury depended upon *culpa*, being the failure to observe that degree of care which a reasonable man would have observed. The point was further made that even though the injury was tragic, it could not be relied upon as a substitute for proof of negligence.

137. The court was also urged to be cautious to find liability on the basis that the defendant had permitted children to use its facilities. This was because a degree of risk was inseparable from physical play, especially where minors were involved. It was submitted that courts had rejected efforts to transform recreational injury into actionable wrongs in the absence of a demonstrable failure of reasonable care on the part of a defendant. The defendant's actions had to be measured against the proverbial *diligens paterfamilias*.

138. The defendant argued that its conduct did not evidence negligence for the following reasons. It underscored the point that comprehensive safety measures had been implemented, and these were tailored to ameliorate the risks associated with trampoline use. The facility had protective padding around each trampoline. It shielded the patrons from exposed metal

[1] 1923 AD 207 at p 216-217

springs and steel frames which make up the trampoline park. The facility was also partitioned into six distinct activity zones, each specifically adapted to the type of activity undertaken therein.

139. Tumbling trampolines were enclosed by rebounding walls, as were trampolines with basketball hoops. The Olympic trampoline designed for higher bounces was bordered by extra padded barriers to soften impact and had a high padded wall.

140. The defendant's facility had trained staff that were deployed in groups of six, on a rotational basis, to supervise and monitor the children actively while they were engaged in play. In addition, the facility also displayed clear and prominent warning signs, while access was conditioned upon execution of an indemnity agreement that specifically flagged the risks associated with trampolining. The document signed by all entrants served as a legal disclaimer and as a tool to enhance awareness and safety.

141. The defendant referred to the evidence of Miriam Mafarikwa who claimed to have identified the plaintiff as having been previously warned for unsafe conduct. That, according to the defendant, confirmed the vigilance of the supervisory regime, and served to illustrate the defendant's internal consistency and enforcement. The fact that the child was recognized, interacted with and cautioned was not a coincidence. It was indicative of a live and responsive oversight mechanism. It undermined the plaintiff's attempt to portray the facility as disorderly and unregulated cesspool of perilous risk and unmitigated danger. According to the defendant, its operational model reflected the hallmark traits of the *diligens paterfamilias:* rational foresight, deliberate action, and authentic concern for patron safety.

142. The defendant further contended that the plaintiff's concession that the facility was in his own estimation 95% safe was a clear acknowledgment that the premises were far from hazardous or improperly maintained. The plaintiff's own perception therefore reinforced, rather than contradicting the reasonableness of the safety measures in place. The defendant further averred that the plaintiff's concession confirmed that the defendant had taken proactive and meaningful steps to diminish the risks inherent in trampolining. The law did not require that such measures be infallible. The defendant argued that its facility did not have to be 100% safe to escape liability. The test was not whether perfect measures were taken, but rather whether the measures taken were reasonable in the circumstances.

143. The defendant further averred that it acted in the manner a reasonable person would have done. It cited the implementation of clear demarcations, active supervision and responding to known and foreseeable risks. It further contended that in the absence of prior complaints, similar incidents or any expert evidence challenging the safety of the designs, let alone establishing that the height of the netting around the area of the accident was inadequate, the defendant could not be held to have fallen short of the required standard. The defendant further argued that the accident was not only unprecedented, but also improbable, and no duty in law demanded that a person must guard against extraordinary or unforeseeable contingencies.

144. The defendant argued that the plaintiff's contention that it ought to have foreseen the risk of a child vaulting over a net situated adjacent to an entrance was grounded not in fact but conjecture. Relating to the evidence of Cheryl, the defendant argued that the net in question functioned solely as a demarcation, it was neither spring loaded nor intended to serve as a fall arrest or impact barrier. The defendant dismissed the argument that the net should have functioned like a rebounding wall as an example of the improper use of hindsight to manufacture foresight.

145. The defendant dismissed the plaintiff's suggestion that the defendant was culpable because the net adjacent to the entrance was of a certain height, as tantamount to imposing a legal burden that exceeded the bounds of reasonableness. It argued that the law did not require fallibility.

146. The defendant also argued that the plaintiff's parents were aware of the risks inherent in the activity their child undertook. The plaintiff's mother expressly signed a document acknowledging acceptance of the defendant's terms and conditions. The latter attempt to disclaim knowledge of those very terms and attendant indemnity was legally unavailing. The court was urged to conclude that by appending her signature to the defendant's document at the reception on the day of the accident, the child's mother unequivocally accepted those terms whether she chose to read them or enquire into their contents. The failure by the child's mother to familiarize herself with the terms and conditions could not be used as a shield against their legal effect. She was bound by the *caveat subscriptor* principle.

147. The defendant also alluded to warning signs that were displayed within the facility. It was averred that it was not the duty of the facility to compel patrons to read the warnings. Its duty was merely to ensure that such warnings were reasonably visible and sufficient to inform patrons of the risks. The court was urged to reject the contention that the child's parents were not duly warned. They are alleged to have knowingly permitted their daughter to participate, fully appraised of the attendant risks, and in doing so, accepted that she did so at their own risk.

148. The defendant denied that its post-accident decision to augment the height of the netting somehow betrayed its culpability. It argued that remedial measures taken after an accident do not, in themselves, imply that earlier precautions were insufficient. It was further argued that the proper legal enquiry was whether the defendant's conduct prior to the incident conformed to the standard of a reasonable in the same position. Post accident alterations were irrelevant to the core question the court was required to resolve.

149. It was submitted that at any rate, the defendant's subsequent modifications proved to be not only ineffective but counterproductive, introducing new hazards and ultimately being abandoned. The defendant contended that such outcome served to reinforce, rather than undermine, the adequacy of the original safety regime, one that included trained staff in active supervision, secure safety netting, clearly demarcated zones, conspicuous signage and expressly stated rules of conduct.

150. As regards the CCTV footage, the defendant submitted that such footage was at all material times available for inspection in accordance with the rules of court. Any fall out between the legal practitioners concerning the process could not be allowed to obscure the critical fact that the plaintiff was invited to view the footage and could, if necessary, have compelled its production through proper procedural channels. The allegation that the defendant withheld the CCTV footage was regrettable and demonstrably incorrect.

151. According to the defendant, the CCTV footage itself spoke volumes. It captured the events leading to the incident and showed the child, with a clear line of sight, attempting an intricate maneuver that she mistimed. The injury that resulted was the product of an accident not an act of omission on the part of the defendant.

152. The defendant also submitted that the plaintiff's evidence and the attendant claim for damages were woefully deficient. It was alleged that the child fell from a height of about three metres and that the net should have broken the fall. However, no expert evidence was led to support the claim. No engineering opinion was tendered, and no measurements were provided to establish the height or inadequacy of the netting.

153. It was further submitted that this was not a matter where human estimates were acceptable. In alleging negligence, the plaintiff was enjoined to bring before the court the proof of such negligence through measurements and expert testimony as to the adequacy or otherwise of the height of the net that the child flew through. The claim could not ride on the back of conjecture and fallible estimations.

154. It was also submitted that the amount claimed as damages was staggering and had no precedent in our law. The amount claimed was dismissed as legal adventurism at worst. It was further submitted that the amounts claimed assumed an even more troubling character when juxtaposed against the inadequacy of the documentation tendered in support thereof.

155. It was pointed out that some of the documents tendered in support of monetary claims contained disclaimers and could not be relied upon. Some of the documents were authored in South Africa by South African persons and yet none of the documents were authenticated. There were also some bank statements without the names of the bank, as well as hospital bills without the name of the hospital or proof of payment. Some of the obligations were also settled by CIMAS, the medical aid provider.

156. It was also submitted that no evidence was adduced regarding the average earnings of professional gymnasts, the probable duration of such careers or any credible methodology for calculating the alleged loss of future income. The plaintiff's claims were dismissed as being excessive, speculative and unsubstantiated. The court was urged to dismiss them with costs.

The analysis

157. Four issues were referred to trial. I now proceed to relate to these, in the context of the evidence that was placed before the court.

Whether the accident is attributable to the defendant's negligence

158. The plaintiff's claim is grounded in the Aquilian action. The key elements of a claim under the Aquilian action are: patrimonial loss, which can be in the form of financial loss or physical injury; wrongful act or omission; fault which can be intentional or through negligence; the causal link between the defendant's conduct and the loss suffered.

159. While the Aquilian action is predominantly the cornerstone of delictual claims, it does not necessarily follow that every form of harm or injury will automatically result in liability for damages. Most of the Aquilian claims are founded on negligence as the proximate cause of the loss or harm. The principle of negligence was discussed in the case of *Mungate v City of Harare & Ors*[2], as follows:

> "The case of *Kruger v Coetze* 1966(2) SA 428 at 430 E-G lays down the standard test for negligence which is (i) whether the harm was reasonably foreseeable; (ii) whether the *diligens pater familias* would have taken reasonable steps to guard against such occurrence and (iii) whether the *diligens pater familias* failed to take those steps."[3]

160. The **BLACK'S LAW DICTIONARY** (9th Ed) defines the term "reasonable man" in the following terms:

> "The reasonable man connotes a person whose notions and standards of behaviour and responsibility correspond with those generally obtained among ordinary people in our society at the present time, who seldom allows his emotions to overbear his reason and whose habits are moderate and whose disposition is equable. He is not necessarily the same as the average man-a term which implies an amalgamation of counter-balancing extremes."

161. For the plaintiff to establish liability on the part of the defendant, it had to be demonstrated that the defendant was negligent, and there was a causal link between the defendant's negligence and the injuries suffered. The plaintiff was required to demonstrate, through evidence that the accident that led to the injuries was reasonably foreseeable, and that a proprietor of a similar recreational facility would have taken reasonable steps to guard against the occurrence of such accidents, and that the defendant failed to take such reasonable steps as would have averted the occurrence of the accident leading to the injuries sustained by the plaintiff.

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[2] HH 328/16

[3] See also *Mbulawa v Mutandiro* 1989 (3) ZLR 83(S).

162. The defendant's first witness admitted in her evidence that the activities at a jump trampoline were inherently dangerous by their nature. Any wrong maneuvers could result in fatal accidents. The plaintiff was injured when she fell through an opening in the safety net that demarcates the trampolines. The safety net was lowered at the very point that the plaintiff fell through as she was performing back flips. No reasonable explanation was proffered by the defendant as to why the net was lowered at this very point. What is common cause is that the opening was not an entrance. It was just an opening close to some other entrance. The explanation given by the plaintiff, from her own observations and experience with the facility, was that the opening was used to pass harnesses.

163. In his report dated 8 February 2023, the Insurance Assessor who testified as the third defendant's witnesses made the following pertinent observations:

> "The safety net behind the lane in which she was back flipping has with a reduced height of one metre against 1.9 metres for the section next to it and the client has explained that this is because this section is next to the entrance and is the area around preparation is done for patrons going onto the obstacle course. Following the incident, Jump Zim Trampoline Park has raised the safety net behind that lane to about 1,9 metres so that it is now at the same height as the safety net behind other lanes."[4] (Underlining mine for emphasis)

164. The views expressed by the Insurance Assessor were significant for the following reasons. That part of the trampoline where the plaintiff fell through had a reduced height of one metre in comparison to the portion next to it which maintained a height of 1,9 metres. The explanation for the mismatch in the height of the net given to the Assessor by the defendant was that this section was next to the entrance and was close to the area where preparations were done by patrons going to the obstacle course. The reason for the lowering of the net at that point therefore dovetailed with the explanation given by the plaintiff that it was for the convenience of passing harnesses to patrons utilizing the obstacle course.

165. The Insurance Assessor constantly referred to the net as a "**safety net"**. It followed that the net was designed as a key feature of the trampoline park to provide some form of shield in the event of an awkward fall. That reference was completely at variance with the explanation given by the defendant's first witness that the net was intended to demarcate the different trampolines.

[4] Page 270 of the record

166. What is also noteworthy is that soon after the accident, the defendant raised the height of the net on that point to secure the opening through which the plaintiff had fallen. That position was confirmed by the plaintiff's and defendant's witnesses. That procedure was, however, reversed with the defendant's first witness alleging that it posed more danger to children than before.

167. That level of indecision on the back of a serious accident which left the plaintiff in a minimally conscious state left the court doubting whether the defendant itself was satisfied with its own safety precautions. If the facility was built to international standards, then one would have expected the defendant to remain resolute with the set up instead of experimenting by raising the height of the net.

168. Further, the defendant's argument that the accident would still not have been averted even if the net was raised was clearly unsustainable. Also unsustainable was the argument that the net would not have been able to hold back a person of the plaintiff's weight because it was designed for demarcation purposes. Throughout the proceedings, the net was referred to by both parties as a **'safety net'**. Why then call it a safety net if it was merely designed to demarcate the various trampolines?

169. In her evidence, Cheryl averred that the manufacturer had designed the park in that way. If that was indeed the case, there was no reason why an attempt was made to alter the manufacturer's specifications by raising the net without the involvement of the manufacturer who designed it. Faced with such serious accusations concerning the reliability and safety of its facility, the defendant bore the onus of proving that: the facility was constructed and approved according to international standards as it claimed. The defendant was expected to bring in an expert to vouch for the safety of the facility. Evidence of the periodic inspections which consistently certified the facility as safe for its purpose ought to have been placed before the court.

170. The court also found unsatisfactory the alleged evidence of the existence of notices that warned participants of the hazards of partaking in the activities or that certain trampolines were not suitable for certain types of activities. The pictorial evidence that the court was referred to was either not clearly visible or one could not tell exactly was written on the

notices. Further, as correctly submitted on behalf of the plaintiff, there was no notice warning that the net was lowered at the point that the plaintiff fell through.

171. According to the defendant, the facility was under constant CCTV surveillance and monitoring. In the circumstances, the defendant was expected at the very least, to place before the court, CCTV footage which clearly showed the location of the various notices vis a vis the place where the accident occurred; the engagements between the defendant's instructors or supervisors and the participants and the warning that was given to the plaintiff not to perform backflips just before the accident occurred.

172. The fact that the defendant chose to produce a short clip of the CCTV footage of the plaintiff performing backflips right up to the point where she fell to the ground was quite revealing. The complete footage would have been significant in giving context to the events of that day from the time the plaintiff, her mother and siblings entered the facility. It would have revealed the part where the child's mother signed the register and the exchanges that happened at the reception where the terms and conditions were explained to the mother.

173. What the court also found unsettling was that at the end of the lowered net where the child flew through were exposed metal hooks. The explanation given for the metal hooks was that they were intended to secure harnesses in the obstacle courses. There was a concrete floor below the metal hooks where the child landed. The metal hooks and the floor were unpadded. It ought to have occurred to the defendant that if a child fell through the lowered net, she would hit against the metal hooks and landed on the unpadded concrete floor. Such danger was clearly foreseeable in my view, given the momentum with which a participant would be propelling themselves on the trampolines towards the area with the lowered net.

174. In its evidence, the defendant sought to seek refuge in what it referred to as the Trampoline Park Indemnity Terms that were placed before the court as an exhibit. The indemnity was not part of the defendant's case as pleaded in its plea. In its response to allegations of negligence as set out in para 8 of the plaintiff's declaration, the defendant merely denied that: it failed to inspect, repair and keep its equipment in good order; it failed to observe general safety precautions that would remove the plaintiff from harm insisting that the plaintiff had been warned against performing dangerous backflips on the day in question;

that it failed to explain to the plaintiff or her parents of the risks associated with partaking in the trampoline activities. No mention was made of the Indemnity Terms.

175. A plea must be understood for what it is. Rule 37(1) requires that the defendant's plea must set forth "*concisely the nature of his or her defence, and deal with the allegations in the declaration as provided in rule 36(11)-(18).*" It behoves the defendant to deal directly with the material averments made in the declaration, which constitute the foundation of the plaintiff's claim. The plea must therefore inform and give the plaintiff notice of the defendant's case and the nature of its defence. The law does not permit the defendant to plead its case in a piecemeal fashion. Neither does the law allow litigation by ambush.

176. The plea ought to have forewarned the plaintiff that the defendant was relying on the Indemnity Terms in its defence. That would have allowed the plaintiff to deal with the defence as pleaded in its replication. Even if the defence based on the Indemnity Terms had been properly pleaded as urged upon the court by the defendant, the footnote of the document contradicts the rest of the text which was intended to be an exclusion of liability based on negligence. It states:

> "If you participate in trampolining your rights to sue Jump if you are killed or injured because the activities were not supplied with due care and skill or were not reasonably fit for purpose are excluded, restricted or modified as set out in this Agreement. The change to your rights as set out in this Agreement <u>does not apply to the extent of any negligence on the part of Jump</u>" (Underlining for emphasis)

177. A literal reading of the above text would suggest that the limitations to the rights of the participants in the event that they were injured or killed whilst partaking in the activities of the park, would not apply where the defendant was negligent. Put differently, it would mean that the indemnity terms would not preclude the defendant from liability if it was negligent.

178. Further, the defendant could not rely on the notices that were allegedly pasted within the trampoline which warned about the risks of partaking in trampoline activities. The alleged notices were not referred to at all in the defendant's plea. The defendant could not seek to rely, at the trial stage, on a defence that was never raised in its own plea. That would not be permissible. The defendant ought to have amended its plea to incorporate these defences if it was so minded to raise them.

179. The court determines that the defendant owed a duty of care to the plaintiff to act positively and reasonably to prevent physical harm that was reasonably foreseeable. The defendant's witnesses admitted that the facility was frequented mostly by minor children. The defendant's witness also admitted that the facility presented a potentially hazardous environment. It must have been reasonably foreseeable that an extra amount of supervision was required considering that minor children by their nature are prone to unpredictable and erratic bouts of behaviour.

180. This court was satisfied that the plaintiff managed to prove on a balance of probabilities that the defendant was negligent, and that its negligence led to the accident that resulted in the injuries sustained by the plaintiff.

The nature and extent of the plaintiff's injuries

181. The injuries sustained by the plaintiff were not disputed. This position was confirmed by the defendant's counsel at the time that evidence was being led from Dr Zimani. The medical reports prepared by Dr Zimani concerning the plaintiff's injuries were therefore admitted into evidence by consent. The evidence on the extent of the child's injuries was led from Dr Zimani. His evidence was not refuted either under cross examination or in the defendant's closing submissions. As was correctly submitted on behalf of the plaintiff, evidence must be rebutted by contrary evidence. The defendant was expected to place before the court its own expert evidence that rebutted Dr Zumani's expert testimony. The nature and the extent of the injuries suffered by the plaintiff was therefore an uncontested issue.

182. Dr Zimani's evidence touched on a wide range of medical issues which also included anticipated future medical intervention and the medical costs related to such interventions. The witness recommended that the plaintiff undergoes physiotherapy in South Africa because of the nature of her injuries. His view was that local institutions were not sufficiently equipped to provide the requisite rehabilitative therapy that was required.

The quantum of damages

183. The respective heads under which damages were claimed were set out in the opening paragraphs of the judgment. The assessment of an appropriate level of damages in cases of

this nature is an onerous task that a court must contend with. In *Minister of Defence & Anor v Jackson*[5], the court observed that:

> "It must be recognized that translating personal injuries into money is equating the incommensurable; money cannot replace a physical frame that has been permanently injured. The task therefore of assessing damages for personal injury is one of the most perplexing a court has to discharge."

184. Having made that observation, the court proceeded to outline certain principles as sampled from various authorities that must guide the court in discharging that obligation. These were summarized as follows:

a. General damages are not a penalty but compensation. The award is designed to compensate the victim and not to punish the wrongdoer.
b. Compensation must be so assessed as to place the injured party, as far as possible, in the position he would have occupied if the wrongful act causing him the injury had not been committed.
c. Since no scales exist by which pain and suffering can be measured, the quantum of compensation to be awarded can only be determined by the broadest general considerations.
d. The court is entitled, and it has the duty, to heed the effect its decisions may have upon the course of awards in the future.
e. The fall in the value of money is a factor which should be taken into account in terms of the purchasing power, but not with such adherence to mathematics as may lead to an unreasonable result.
f. No regard is to be had to the subjective value of money to the injured person, for the award of damages for pain and suffering cannot depend upon, or vary, according to whether he be a millionaire or a pauper.
g. Awards must reflect the state of economic development and current economic conditions of the country. They should tend towards conservatism lest some injustice be done to the defendant.
h. For that reason, reference to awards made by the English and South African Courts may be an inappropriate guide, since conditions in those jurisdictions, both political and economic, are so different.

185. The assessment of damages involves the exercise of a wide discretion by the court to award what it considers to be fair and adequate compensation for the injuries suffered. That is, however, not to suggest that the court's discretion is unfettered. That discretion is influenced by the circumstances of the case and past awards made by the courts in cases of that nature.

186. According to authors Visser and Portgieter[6], the quantum of compensation must bear relation to the extent of the loss suffered. Although it is conceptually impossible to express

[5] 1990 (2) ZLR 1 (SC)

non-pecuniary harm directly in monetary terms, the amount of compensation should nevertheless be directly proportionate to the loss suffered.

Pain and suffering

187. The claim was for US$1, 000, 000.00. It was motivated on the grounds that the plaintiff will have to endure pain for the rest of her life. This was confirmed by all the witnesses who testified on behalf of the plaintiff. The evidence painted a grim picture, of a life of pain, discomfort, physical and mental suffering. In assessing what would be reasonable compensation, the court must have regard to the pain suffered in the past, the present and expected in the future.

188. To appreciate the significance of the claim, the court must have regard to the injuries sustained as reported by Dr Zimani who attended to the plaintiff soon after the accident. In his report dated 23 February 2023, Dr Zimani noted the following after his first attendance on the plaintiff.

- The plaintiff landed on her head and immediately lost power in the lower and upper limbs and had no sensation. She had fallen from a height of about 2 to 3 metres.
- An MRI scan revealed a fracture of what the doctor called the C6 and C7 with subsluxation at C7, a fractured bone at c7 behind the c7 plus a disc fragment with vertebra compressing the spinal cord
- The doctor noted that there was an urgent need to decompress the cervical spine to try and get a better neurological outcome. The plaintiff was taken into theatre to try and decompress the spinal cord.
- During the operation, they performed a disc removal at C6 and C7. The doctor noted that the bone was still adhesive to the c7 bone, and they tried to reduce it again. They performed a discectomy of the C7, and proceeded to perform a copectomy of the c7. After that, they were able to remove the rest of the C6 disc including the one behind C7, after noting the retro pulsed disc and the bone fragment at C7 and managed to free the cord, detaching the longitudinal ligament. They were still not satisfied with the reduction at C6, as there was still some compression and so they proceeded to perform a copectomy of C6, up until the cord was free.

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[6] Law of Damages Third Edition, 2012 at p498

- They proceeded to perform a disc removal of C5, and scrapped the end plates. They noted cord eodema and dural tear with some CSF leak which they managed to control. They harvested the iliac bone and prepared a bone graft. They inserted a plate from C5-T1. At this stage, because of the fracture, they had to stop the bleeding from the fractured bone. They managed to control the bleeding and closed all the wounds in layers, leaving a drain in place.
- Post operation, they noted that the patient sensory improvement though her motor remained unchanged. She had moved from Asia A to B.
- While in the High Dependent Unit, the child developed a fever. A chest x-ray showed a collapse of the left lung. They engaged a pulmonologist to aid in her management. During his intervention, he performed a bronchoscope which showed a mucus plug. The child improved significantly in terms of the fever attack and was discharged back to the ward.
- The plaintiff had to undergo bladder training plus assistance with bowel motion. The rehabilitation was started whilst she was in hospital.
- She had no sensation in the limps.

189. In a further report dated 14 June 2023, the doctor noted the following:

- The effect of the high cervical injury and the loss of chest muscles exposed the plaintiff to the risk of recurrent respiratory infections, such as pneumonia. She would need to be in constant need of respiratory support.
- Her loss of mobility meant that she needed a care aid to help her turn as much as possible to prevent pressure sores which if they occurred would put her at the risk of having infections and micro bleeds which would also lead to some transfusions.
- Neuropathic pain was also a potential risk and could occur because of syrinx which at times needed surgical decompression. The pain would need to be controlled by baclofen pump, or she would need Neur-stimulation.
- There was a stiffness of muscles which would need the use of a baclofen pump.
- The plaintiff was having attacks of autonomic dysfunction which occurred as a result of things like infection or pain. The result was that she would have uncontrollable blood pressures which would if severe, require hospital care to decrease, and control

the abnormal levels of adrenaline which would be in her system. As a preventative measure, she would need a constant catheter change every two weeks and making sure that she does not develop further complications.

190. On the plaintiff's mobility and independence, the report made the following observation:

> "The current goal at first is to get Rebecca to sit in a wheelchair and if possible get her to function to use her upper limp. The main challenge in her upper limb is that she has poor finger grip and cant do some activities like button her shirt, tie shoe etc. it is possible she may remain with the loss of function and would require assistance with those things if possible with a care giver."

191. The report also noted that the plaintiff was still dependent even on getting in and out of a car. She could not move on her own. The report recommended a modified car once she was able to sit for long periods in a chair. She was unlikely to be able to use public transport again. She was also going to struggle with office typing as she had a poor hand function and could only swipe her limbs. As a result, she would be limited to work which only involved speech and little work that required hand function.

192. Concerning the plaintiff's future management, it was reported that at the time of preparing the report, the plaintiff was reviewed after every three months. This would however be reduced to every six months. She would also need reviews by a physiotherapy team. She also needed follow ups by a urologist to cater for her bladder. A physician was required to be on standby for any electrolytes and other medical issues. A psychologist was also required to manage her mental state, and this was likely to be intense as the clinical picture became clear.

193. The report concluded by stating that:

> "Rebecca is a young lady who has suddenly lost function and this is going to affect her mental state to which she will definitely need follow up and care this worsens as reality starts setting in. there are promising therapies which may be present in the future but these are dependent on her being in a fairly fit state, it is our hope we can keep her in such a state till that time."

194. The doctor's reports vividly portrayed a picture of a young lady whose promising life in academia and as an adept gymnast was brought to an abrupt end. What made her claim unique was that apart from being unprecedented in this jurisdiction, she needs expert medical management and supervision every day of her life if she is going to live longer. Some of the services which are of an expert nature are not available in Zimbabwe. That means she is required to travel to countries like South Africa and outside the continent

where such services are readily available. That requires funds for travel, accommodation and the medical services.

195. The accident left the plaintiff in a near vegetative state. Although she can still talk, she has no use of her limbs. As the doctor observed in his report, she cannot perform any type of work that requires the use of her hands or legs. She had to drop out of school and is confined to a wheelchair for the rest of her life. She suffers from bladder and bowel dysfunction. She needs a constant change of diapers. She needs a helper to monitor her at every turn. It means that if her parents cannot afford an aide, then one of them must sacrifice their own profession for the sake of the child. In short, the plaintiff is beset by numerous medical problems which require medical attention for each day of her life. Regrettably, that medical attention does not come cheap because of the complex nature of her injuries.

196. While it is accepted that the objective of general damages is not to penalize a wrongdoer, but to compensate the victim, the court must consider each case in accordance with its own peculiar circumstances. This court is enjoined, in making what it considers to be a reasonable award, to relate to awards that were made by superior courts in comparable cases. The task becomes more arduous when the court is required to navigate through uncharted waters.

197. As was observed by WATERMEYER JA aptly put it in *Sandler v Wholesale & Coal Supplies Ltd*

> "… it must be recognized that though the law attempts to repair the wrong done to a sufferer who has received personal injuries in an accident by compensating him in money, yet there are no scales by which pain and suffering can be measured, and there is no relationship between pain and money which makes it possible to express the one in terms of the other with any approach to certainty. The amount to be awarded as compensation can only be determined by the broadest general considerations and the figure arrived at must necessarily be uncertain, depending upon the judge's view of what is fair in all the circumstances of the case."[7] (Underlining for emphasis)

198. The defendant dismissed the plaintiff's quantification claim outrightly arguing that the sum of US$6,370,000.00 was staggering and had no precedent in our law. The claim was

7. 1941 AD 194

dismissed on the basis that it was excessive at best and adventurous at worst. I have not found any authority whose circumstances are similar or closely related to the present matter.

199. In the closing submissions, the plaintiff referred the court to the case of *Hokonya & Anor v Chinyani* which further cited the following useful authorities:

> "***Admin Gen SWA v Kriel*** supra involved a young girl who suffered severe paraplegia from a skull injury caused by a bullet wound and the amount awarded was R110 000. In ***Koen v Keates*** supra the plaintiff, who was 16 years at the time of the accident suffered a broken spine as a result of a traffic accident which resulted in paralysis of her lower body. She, however, made partial recovery and was eventually able to walk with the assistance of a caliper on one leg. She was awarded $40 000 as general damages (before reduction taking into account contributory negligence). In ***Minister of Defence & Anor v Jackson***, the plaintiff who was 25 years old at the time of the traffic accident in question, suffered a one-inch shortening of one leg, a total loss of his sense of smell, double vision, considerable loss in the retention of memory, laboured speech, and became extremely labile emotionally. The amount of general damages awarded was $35 000. In ***Makudzo v Minister of Home Affairs*** supra the details of the accident were somewhat sparely described, but the plaintiff as a result of a gunshot wound became a paraplegic, needing a wheelchair and needing to be bathed, fed and nursed. The amount of general damages awarded was $100 000 (before taking into account a reduction for contributory negligence). In ***Chaza v Ramajan*** supra the 25 year old plaintiff suffered paralysis from the waist down when her spinal cord was severed by a bullet. The amount of general damages awarded was $50 000."

200. Other useful authorities in which awards were made in this jurisdiction were summarised in *Gwiriri v Starafrica Corporation (Private) Limited t/a Highfield Bag (Private) Limited*[8]. These are summarised hereunder as follows. In *Chamunorwa v Soweto and Another* HH 212/93, a 50 year old woman was injured. She had metal plates, put in her arm, and she was left with facial scars. She suffered a 40% disability. She was awarded $15 000 for shock, pain and suffering, and loss of amenities of life.

201. In *Marufu v Mawona & Others* the plaintiff suffered injuries to his limbs. Both his lower legs and the right femur were broken. The bones protruded. Pins were inserted in both legs. His right leg was now shorter than the other and he had to wear special shoes. He suffered 40% disability. He was awarded $50 000 (Zimbabwean dollars) for pain suffering and loss of amenities of life.

202. In *Mabvoro & Another v Muza* HH 199/85 two plaintiffs were injured in a road traffic accident. They were husband and wife. The husband was aged 30 years and the wife 24 years. The husband suffered a fracture of the left leg below the knee and at the right wrist.

[8] HH 20/10

He sustained serious cuts and bruises and was unconscious for some hours. He was hospitalised for 2 weeks. He was awarded $15 000 (Zimbabwean dollars) for pain and sufferings, loss of amenities and disfigurement. The wife had fractures in both legs above the knees. A mal union of the other bone in the right leg which was ¾ of an inch shorter than the left. She also had recurrent pain in her legs for the rest of her life. She was awarded $20 000 (Zimbabwean dollars) for pain and suffering, loss of amenities and disfigurement.

203. In the *Gwiriri* case (supra) the plaintiff was involved in a workplace accident. His right hand was trapped between machine rollers of the tapeline 11 machine as he tried to insert some broken plastic strands. He sustained a crushed right hand assessed at 65% disability. After the accident he was taken to hospital. He remained hospitalised from the 20th April 2006 to 4 September 2006. Upon discharge from hospital, he was later discharged from employment on medical grounds with effect from 1 June 2007. The court made an award of US$9, 000.00 in respect of general damages and US$11, 407.00 for loss of future earnings.

204. As stated already, the plaintiff's claim under this head was US$1,000,000.00. The plaintiff's witnesses gave a vivid account of how the accident occurred and the amount of pain and suffering that she must live with for the rest of her life. That the plaintiff is suffering immense pain and suffering was not controverted by the defendant. Her circumstances are indeed without precedent in jurisdiction.

205. While the amount claimed by the plaintiff may appear to be steep going by awards made by courts in this jurisdiction, it is not entirely correct that the court cannot make an award which differs significantly from what courts have awarded in the past in respect of bodily injuries. This is so especially in cases where the defendant did not demonstrate that it does not have the means to satisfy the award. The value of human life is priceless. The court finds an award of US$300,000.00 to be a reasonable in respect of pain and suffering.

Loss of current and future amenities

206. The sum of US$800,000.00 was claimed under this head. It was concerned with the plaintiff's loss of the ability to participate in the general or specific activities of life, and to enjoy life as she previously did. In determining the appropriate level of damages, the court is required to consider factors such as loss of marriage opportunities, loss of general health,

change of personality; loss of intellectual function, insomnia, and the fact that the disability makes it difficult, if not impossible for the plaintiff to exercise her profession anymore.

207. According to authors *Visser & Potgieter*[9], a plaintiff's age and health are also relevant in determining compensation under this head. Specific losses such as participation in sport also plays an important role. The evidence before the court showed that the plaintiff may never be able to use her limbs again. That means any prospect of getting married have all but been eliminated. She will not be able to participate in the sport that made her a world champion at a tender age. According to her father, the plaintiff needs more than an hour to get out of bed. It also takes a lot of effort to get her in and out of a car.

208. All the dreams that she harboured for the future were shattered in flash. The court finds an award of US$200,000.00 to be fair and reasonable compensation for the loss.

Shortened Expectation of Life

209. The sum of US$1,000,000.00 was claimed under this head. In the closing submissions, the plaintiff referred to Cheryl's concession under cross examination that there was no price one could attach to life. As already observed, the defendant did not comment on the appropriateness of the amounts claimed, in the event that liability was established against it.

210. Authors Visser & Potgieter[10] provided the following useful guidelines in assessing damages under this head. They said:

> "It is therefore necessary for the court to examine the circumstances of the individual life and ascertain whether the shortening thereof would lead to deprivation of a positive measure of happiness. If the character or habits of the individual were calculated to lead to a future of unhappiness or despondency, that would be a circumstance justifying a smaller award. The appropriate figure should also be reduced in the case of a very young child since there is necessarily so much uncertainty about the child's future that no confident estimate of prospective happiness can be made."[11]

211. At the time of the accident the plaintiff was only 16 years of age. She had become an accomplished gymnast at a very young age. The nature of the sport that she excelled in required one to be exceptionally fit and flexible. It required balance and endurance which came with full body training and physical agility. In short, the sport created the proverbial

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[9] Supra at p 510
[10] *Law of Damages* at p 512
[11] See also Corbett M, Buchanan J L *The Quantum of Damages in Bodily and Fatal Injury Cases (General Principles)*, 3rd ed Juta Cape Town 1985 (Corbett & Buchanan I)

human machine. The plaintiff was therefore exceptionally fit and would have enjoyed her life to the fullest until she retired as a sportsperson.

212. According to the plaintiff's father the accident drastically reduced the plaintiff's life expectancy to less than 30 years in the absence of improved therapy which was not readily available in the country. The plaintiff has fallen from her wheelchair on several occasions.

213. The court accepts that it is well nigh impossible to attach a value to human life or ascertain how long the plaintiff would have lived. The evidence before the court shows that the plaintiff requires extensive medical rehabilitation and around the clock monitoring if she is to live longer. Without close supervision and further medical care, the plaintiff will not live longer. In his evidence, the plaintiff's father also told the court that her life expectancy would be significantly reduced without therapy, and such therapy was required daily to avoid bed sores. The court finds an award of US$200,000.00 to be reasonable under the circumstances.

Loss of Earning Capacity and Loss of Professional Earnings

214. The claims were made separately but I have combined them herein because they are related. The plaintiff claimed US$600,000.00 for loss of earning capacity, and US$500,000 for loss of professional earnings. In motivating the claims, it was submitted in the plaintiff's closing submissions that it was not in dispute that the plaintiff was destined for a very rewarding career as a gymnast. She had already proved herself when she became a world champion at a tender age. Her exploits had been recognised outside the country, and at the time of the accident, she was preparing for the Olympics.

215. In his evidence, the plaintiff's father also stated that prior to the accident, the plaintiff had received several scholarships offers for her to pursue her career in gymnastics. She was also an avid swimmer and had the ability to excel at a higher level. All that had been shattered by the accident.

216. It was further submitted that there was no standard one had to use, and the court had to follow the approach set out in the authorities. What was clear was that the plaintiff started her career at a very young age and would have continued for a long time, but for the accident. The court was urged to consider the direct benefits that she had forfeited as well as the many endorsements and scholarships that she would have received.

217. In response, the defendant argued that the claims were devoid of evidentiary support. There was no credible methodology for calculating the alleged loss of future income. In the absence of proof, the claim rested on speculation.

218. In her closing submissions, the plaintiff referred to the case of *Rusike v Tenda Transport (Pvt) Ltd & Anor*[12], in which the court cited some useful South African authorities. In *Nhlumayo v General Accident Ins Co of South Africa Ltd*[13], it was held that the court had a discretion to do what it considered was right in all circumstances and it was certainly not bound by inexorable actuarial calculations. That approach had also been followed by the Appellate Division in *Southern Ins Association Ltd v Bailey NO* 1984(1) SA 98 (A) at 116G-H.

219. In *Griffiths v Mutual Federal Ins Co (Pvt) Ltd*[14], the court made the following apposite remarks:

> "In a case where there is no evidence upon which a mathematical or actuarially based assessment can be made, the Court will nevertheless, once it is clear that pecuniary damage has been suffered, make an award of an arbitrary, globular amount of what seems to it to be fair and reasonable, even though the result may be no more than an informed guess." (Underlining for emphasis)

Similar remarks were also made in *Santam Ins Co Ltd v Paget* 1981 (1) ZLR 73 (A), where the court held that:

> "A court should make some award in cases where damages are claimed for loss of future earning capacity if it is satisfied that the plaintiff has suffered such a loss, even where there is insufficient information to assess the loss accurately and the court has to pluck a figure from the air." (Underling for emphasis)

In *S and Anor v Distillers Co (Biochemicals) Ltd* (1969) 3 All ER at p 1149, the court also held that:

> "In every case where a person has been severely injured by the negligence of another the assessment of damages is not an easy matter. Mathematical accuracy is impossible, and there is no yardstick by which the court can measure the disability. But an assessment has to be made, and a fair and moderate value has to be placed on the disability and on the consequential loss. Actuarial aids are sometimes helpful, but they are not the be-all and end-all of this difficult matter. In the long run is the court which takes into consideration all the circumstances of the case, that is to say, the deprivation, the loss of earning capacity and the cost of epical expenses, and then decides what is fair compensation to both parties. The assessment of the global sum is based on experience and by the

[12] 1997 (1) ZLR 495 (HC)
[13] 1986 (3) SA 859 (D) at 863 F-G
[14] 1994 (1) SA 535 (A) at 546F-G

> application of reasonable common sense and according to social standards as reflected in the general level of awards by the courts." (Underlining for emphasis)

220. I find the above dicta persuasive and relevant to the circumstances of the present case. Such an approach commends itself as being desirable and necessary in this case where the court must deal with the valuation of a non-economic loss. In assessing the damages for loss of earning capacity, the court must also consider that the plaintiff was still going to school, and there is no real criteria for the court to assess what income she would have earned in the future since she was not receiving any income yet.

221. The origin of the figures of US$500,000.00 in respect of loss of professional earnings and US$600,000.00 in respect of loss of earning capacity was not explained, with the plaintiff's counsel also conceding that there was no predetermined standard one could use. I find them to be on the excessive side. Applying the guidelines in the foregoing authorities, the court will award US$180,000.00 for loss of professional earnings and US$150,000.00 for loss of earning capacity.

Disfigurement

222. The sum of US$500,000.00 was claimed under this head. The court was referred to the case of *Marufu v Mawona & Ors*[15] in which the following authorities were cited. In ***Mabvoro & Anor v Muza*** HH 199/85, the two plaintiffs were injured in an accident. The husband who was about 30 years old sustained a fracture of the left leg below the knee and of the right wrist. He also sustained cuts and bruises and was unconscious for some hours. He was awarded $15, 000.00 for pain and suffering, loss of amenities and disfigurement.

223. The wife, who was 24 years old, sustained fractures in both legs above the knees. There was a malunion of the bone in the right leg which was three-quarters of an inch shorter than the left. She needed assistance with household chores and would have recurrent pains in her leg for the rest of her life. She was awarded damages in the sum of $20, 000.00 for pain and suffering, loss of amenities and disfigurement.

224. In ***Chamunorwa v Soweto & Anor*** HH 212/93, a 50 year old man was injured in a bus accident and sustained a 40% degree of disability. He was awarded $15, 000.00 for shock, pain and suffering and loss of amenities. In *Mkhiza v Gumede* HB 110/91, the plaintiff was

[15] 1996 (1) ZLR 593 (HC)

assaulted. He sustained severe pain and shock, paralysis of the left arm and fingers and disability of his left leg and was unable to work. He was awarded damages in the sum of $20, 000.00. In *Bhebhe & Anor v Mukhomi & Anor* HB-9/93, the plaintiffs were injured in an accident and sustained permanent disabilities with an estimated degree of 7.5% and 6% respectively. They were awarded damages in the sum of $13, 500.00 and $14,000.00.

225. There was no comment from the defendant in respect of this head. There have been many currency and monetary changes in Zimbabwe making it difficult for the court to rely on awards that were made before the latest round of currency changes.

226. Disfigurement denotes a permanent or long-lasting physical changes to the body that significantly alters a person's appearance as well as impacting on their self-esteem, psychological well-being and even future opportunities in life. The loss involves the aesthetic value of the body or part thereof.

227. It is not in dispute that the effect of the accident left the plaintiff completely disfigured. Her father told the court that the plaintiff was left with a permanent scar on her neck. She also lost a lot of weight. Hers was a life changing experience from being the once vivacious and athletic girl to being permanently confined to a wheelchair. The court considers an award of US$80, 000.00 to be reasonable under the circumstances.

Current medical and hospital expenses

228. The sum of US$170,000.00 was claimed under this head. It was submitted that the expenses incurred had already been placed before the court. An amount of US$34,000.00 had been expended in the first few days of the accident to cover costs associated with the emergency surgery procedures that was performed at Healthpoint Hospital in Harare.

229. The documents placed before the court in support of medical bills were dismissed by the defendant on the basis that some of them were from a foreign source and not properly authenticated in accordance with the rules of court. Some of the documents were also dismissed for having dubious credentials in that some bank statements placed before the court did not even have the name of the bank from which they originated. Some hospital bills did not even have the name of the hospital or proof of payment.

230. The unchallenged evidence of the plaintiff's witnesses was that as part of her rehabilitation and post-surgery management, the plaintiff had to be flown to South Africa where she was

hospitalised at the Netcare Rehabilitation Centre for more than three months at a cost of R98, 000.00 per week. Her medical journey had started at the Healthpoint Hospital in Harare where the first surgery was performed.

231. It is not in dispute that owing to the injuries that she sustained, the plaintiff had to receive further medical attention within the country and outside the country. The case of *Mbundire v Tyrone Sim Buttress*[16], provides useful guidelines on how a court must deal with a claim for damages under this head. The court held as follows:

> "It is appropriate at this stage to consider the approach that has been followed by the Courts in the assessment of damages in general, and special damages in particular. In *Hersman Shapiro & Co* 1926 TPD 367, 379-80 STRATFORD J observed:
>
> "… monetary damage having been suffered, it is necessary for the Court to assess the amount and make the best use it can of the evidence before it. There are cases where the assessment by the Court is very little more than an estimate; but even so, if it is certain that pecuniary damage has been suffered, the Court is bound to award damages. It is not so bound in the case where evidence is available to the plaintiff which he has not produced; in those circumstances the Court is justified in giving, and does give, absolution from the instance. But where the best evidence available has been produced, though it is not entirely of a conclusive character and does not permit of a mathematical calculation of the damages suffered, still, if it is the best evidence available, the Court must use it and arrive at a conclusion based upon it …". (Underlining for emphasis)

232. Further down the same judgment, the court made the following apposite remarks:

> "As stated in the *Quantum of Damages in Bodily and Fatal Injury Cases*, *op cit*, at p 99, in a case such as the present, a Court does not grant absolution but may tend towards conservatism in assessing the damages. The learned authors state:
>
> "The general attitude of the court has been that if there is evidence upon which an estimate not unfair to the defendant can be made, it should not refuse to make an award merely on account of the deficiencies in the case presented upon the plaintiff's behalf. Nevertheless, the failure to adduce such evidence would normally operate to the disadvantage of the plaintiff in that, in its absence, the court would normally tend towards conservatism in computing the damages."" (Underling for emphasis)

233. I associate myself with the views of the court as expressed above. As already noted, it was not in dispute that following the accident, the plaintiff underwent emergency surgery for the decompression and fusion of her spinal cord. Several tests were performed before and after the surgery. She was flown for further rehabilitation at Netcare Rehabilitation in South Africa. Further costs were incurred in the process.

[16] SC 13/11 at p 4 of the judgment

234. The plaintiff was also flown to Capetown in South Africa where further investigations concerning her rehabilitation were carried out. All this was not disputed. Based on the above authorities, the plaintiff's claim cannot be defeated merely on account deficiencies in the documentation that was placed before the court. If the defendant chose not to put in issue the injuries suffered by the plaintiff and their gravity, it cannot surely contest the expenses incurred in attempting to save her life. This is even more so considering that it was not dispute that such medical interventions were necessary.

235. In view of the delicate nature of the surgery that was performed on the plaintiff, as well as the post-surgical procedures and rehabilitation, the court finds the claim for US$170, 000.00 to be reasonable compensation for current medical and hospital expenses.

Future medical and hospital expenses

236. The plaintiff claimed US$1, 800, 000.00 under this head. In assessing this claim, the court was urged to have regard to the evidence of Dr Zimani, where he stated that a medical procedure would become available and necessary in the future, which the plaintiff would need to subject herself to in order increase her prospects of living longer. Dr Zimani opined that the procedure would require about US$250, 000.00 to be performed.

237. In his evidence, the medical doctor also stated that the plaintiff also required stamp cell therapy to manage her blood cells. Such therapy was performed in India, and costs between US$23, 000 and US$50, 000. There was a further medical procedure to be performed in Switzerland which was required to manage her brain and muscles at a cost of around 20, 800 pounds. That would translate to US$27, 939.00 at an exchange rate of 1 pound sterling to US$1,34, as at the date of handing down this judgment.

238. Three people were required to travel to India and Switzerland at a cost of US$1, 500.00. Several therapies were needed to be performed at a cost of US$4, 200.00 per week.

239. It was not dispute that the plaintiff needed future medical procedures, management and rehabilitation if she is to live much longer. It was also not disputed that some of the medical procedures would need to be carried out outside Zimbabwe, in countries like South Africa, India and Switzerland where there are advanced medical facilities. The defendant did not dispute that further medical procedures were required, and these cannot be performed locally.

240. Be that as it may, I find the claim for US$1, 800, 000.00 on the excessive side. The court will award the sum of US$250, 000.00, indicated by Dr Zimani as the cost of the future medical procedure to be performed to aid in the plaintiff's rehabilitation. To that amount the court will also add an additional US$77, 939.00, which is made up of the sum of US$50,000.00, being the expenses required to cover stamp cell therapy for blood cells, and US$27, 939.00 in respect of further procedures to manage the brain and muscles in Switzerland.

241. The evidence before the court also demonstrated that the plaintiff required continuous medical rehabilitation. That entails further costs of air travel and accommodation, as well as her day-to-day medical needs. The court therefore determines that the amount of US$327,939.00 would reasonably cater for these future medical needs.

Conclusion

242. Claims for non-economic loss or non-patrimonial loss present a legal conundrum for the courts especially in this jurisdiction where the economic environment has been characterized by periodic currency changes and exchange rate fluctuations. That poses challenges where the court is required to place reliance on past awards in assessing an appropriate award to be made in any given case.

243. In the present matter, the court's task was not made easy by the defendant's unwillingness to provide some insight into its financial standing for the court to determine its capacity to pay the amounts awarded as damages. The defendant proceeded on the premise that it was not liable in the first place and therefore the issue of damages did not arise at all. The agreed trial issues as delineated by the parties were clear that once a finding on liability was made, the question of the assessment of damages and the quantum thereof would arise and require further interrogation. The defendant was therefore expected to address the court on that important issue.

244. There is a related legal issue concerning the currency in which the claims were made. The claims were made exclusively in the United States dollar currency. Neither party addressed the issue in their closing submissions. The position of the law is trite that this court cannot grant judgment or an order that sounds exclusively in United States dollars, save for those exceptional cases where the law permits that financial obligations must be discharged in

foreign currency.[17] In the absence reasons justifying why an award must be made exclusively in United States dollars, the court must therefore make an award that complies with the provisions of the law.

Costs of suit

245. The level at which costs of suit were to be paid was made an issue for trial. The question of costs, and the level at which they must be paid is a matter wholly within the discretion of the court. It was not necessary to make it a trial issue. Besides, counsels did not address it as a standalone issue in their closing submissions.

246. The general principle of the law is that costs follow the event. In determining the party liable for costs of suit, and the level at which they must be paid, the court considers many factors which include the way litigation was conducted and the behaviour of the parties. It is for that reason that in certain instances a successful party may even be denied costs of suit. In the present matter, the court finds no reason to depart from the general principle of law and award costs of suit to the plaintiff as the successful party herein.

Resultantly, it is ordered that:

1. Judgment is granted in favour of the plaintiff as against the defendant for the payment of:
   1.1 US$300,000.00 or the ZiG equivalent convertible at the prevailing interbank rate on the date of payment, being damages for pain and suffering.
   1.2 US$200,000.00 or the ZiG equivalent convertible at the prevailing interbank rate on the date of payment, being damages for loss of current and future amenities.
   1.3 US$200,000.00 or the ZiG equivalent convertible at the prevailing interbank rate on the date of payment, being damages for shortened expectation of life.
   1.4 US$80,000.00 or the ZiG equivalent convertible at the prevailing interbank rate on the date of payment, being damages for disfigurement.
   1.5 US$180,000.00 or the ZiG equivalent convertible at the prevailing interbank rate on the date of payment, being damages for loss of professional earnings.
   1.6 US$150, 000.00 or the ZiG equivalent convertible at the prevailing interbank rate on the date of payment, being damages for loss of earning capacity.
   1.7 US$170, 000.00 or the ZiG equivalent convertible at the prevailing interbank rate on the date of payment, being damages for current medical and hospital expenses.
   1.8 US$327,939.00 or the ZiG equivalent convertible at the prevailing interbank rate on the date of payment, being damages for future medical and hospital expenses.
2. The defendant shall pay the plaintiff's costs of suit on an ordinary scale.

[17] *Zambezi Gas Zimbabwe (Private) Limited v N.R. Barber & Anor* SC 3/20. See also s 44C (2) of the Reserve Bank of Zimbabwe Act [*Chapter 22:15*]

MUSITHU J: ……

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